

CARTER

British Policy in the
Illinois Country 1763-1768

History

Ph. D.

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POLICY IN THE ILLINOIS COUNTRY, 1763-1768 ***

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BRITISH POLICY IN THE ILLINOIS COUNTRY 1763–1768

BY

CLARENCE EDWIN CARTER
A. M., 1906 (UNIVERSITY OF WISCONSIN)

THESIS
SUBMITTED IN PARTIAL FULFILLMENT OF THE REQUIREMENTS
FOR THE
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IN THE
GRADUATE SCHOOL
OF THE
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1908

UNIVERSITY OF ILLINOIS

June 1 1908

THIS IS TO CERTIFY THAT THE THESIS PREPARED UNDER MY SUPERVISION BY

Clarence Edwin Carter, A.M.

ENTITLED *British Policy in the Illinois*
Country, 1763-1768

IS APPROVED BY ME AS FULFILLING THIS PART OF THE REQUIREMENTS FOR THE DEGREE

OF *Doctor of Philosophy in History*
Evarts Breen

HEAD OF DEPARTMENT OF *History.*

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BRITISH POLICY IN THE ILLINOIS COUNTRY

1763-1768

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CHAPTER I.

INTRODUCTORY SURVEY.

In 1763 Great Britain was confronted with the momentous problem of the readjustment of all her colonial relations in order to meet the new conditions resulting from the peace of Paris, when immense areas of territory and savage alien peoples were added to the empire. The necessity of strengthening the imperial ties between the old colonies and the mother country and reorganizing the new acquisitions came to the forefront at this time and led the government into a course soon to end in the disruption of the empire. Certainly not the least of the questions demanding solution was that of the disposition of the country lying to the westward of the colonies, including a number of French settlements and a broad belt of Indian nations. It does not, however, come within the proposed limits of this study to discuss all the different phases of the western policy of England, except in so far as it may be necessary to make more clear her attitude towards the French settlements in the Illinois country.

The European situation leading to the Seven Years War, which ended so disastrously to French dominion, is too familiar to need repetition. That struggle was the culmination of a series of continental and colonial wars beginning towards the close of the seventeenth century and ending with the definitive treaty of 1763. During the first quarter of the century France occupied a predominating position among the powers. Through the aggressiveness of Louis XIV and his ministers her boundaries had been pushed eastward and westward, which seriously threatened the balance of power on the continent. Until 1748 England and Austria had been in alliance against their traditional enemy, while in the Austrian Succession France had lent her aid to Prussia in the dismemberment of the Austrian dominions,—at the same time extending her own power in the interior of America and India. In the interval of nominal peace after the treaty of Aix-la-Chapelle in 1748, preparations were begun for another contest. The astute diplomacy of Kaunitz won France from her traditional enmity and secured her as an open ally for Maria Theresa in her war of revenge. ^[1]

While the European situation was giving occasion for new alignments of powers, affairs in America were becoming more and more important as between France and England. Here for over a century the two powers had been rivals for the territorial and commercial supremacy.

In North America the pioneers had won for her the greater part of the continent,—the extensive valleys of the St. Lawrence and the Mississippi with all the land watered by their tributaries. The French claim to this region was based almost entirely upon discovery and exploration, for in all its extent less than one thousand people were permanently settled. Canada at the north and the region about New Orleans on the extreme south containing the bulk of the population, while throughout the old Northwest settlements were few and scattering. [2] Trading posts and small villages existed at Vincennes on the Wabash River, at Detroit on a river of the same name, at St. Joseph near Lake Michigan and other isolated places. Outside of Detroit, the most important and populous settlement was situated along the eastern bank of the Mississippi, in the southwestern part of the present state of Illinois. Here were the villages of Kaskaskia, St. Phillippe, Prairie du Rocher, Chartres village and Cahokia, containing a population of barely two thousand people.

In contrast to this vast area of French territory and the sparseness of its population were the British colonies, with more than a million people confined to the narrow strip between the Alleghany mountains and the Atlantic ocean. These provinces were becoming comparatively crowded and many enterprising families of English, Scotch Irish, and German extraction were pushing westward towards the mountains. Each year saw the pressure on the western border increased; the great unoccupied valley of the Ohio invited homeseekers and adventurers westward in spite of hostile French and Indians. By the fifth decade the barriers were being broken through by constantly increasing numbers, and the French found their possession of the West and their monopoly of the fur trade seriously threatened.

To prevent such encroachments the French sought to bind their possessions together with a line of forts extending from the St. Lawrence down the Ohio valley to the Gulf of Mexico. It had indeed been the plan of such men as La Salle, Iberville, and Bienville to bring this territory into a

compact whole and limit the English colonies to the line of mountains. New Orleans and Mobile gave France command of the Gulf of Mexico and the Mississippi River; Louisburg, Niagara, and Frontenac afforded protection for Canada. The weak point for France was the Ohio valley, in the upper part of which Virginia and Pennsylvania settlers had already located. Celoron, who went down the Ohio in 1749, burying plates of lead to signify French dominion, warning English settlers and traders, and persuading the Indians to drive out the invaders of their hunting grounds, saw the inevitableness of the conflict. The American phase of the final struggle for colonial empire was to begin in this region. [3]

In the early years of the war Great Britain and her ally met with serious reverses every where, and it seemed probable that France would be able to hold her line of defense in America. The French colonies, however, were fundamentally weak. Being wholly dependent upon the mother country, when the latter became absorbed in the continental struggle to the exclusion of her interests in her colonial possessions, defeat was inevitable. By 1758 the tide was turning in America; this, together with the victories of Clive in India and Frederick the Great at Rossbach and Leuthen, started France on her downward road to ruin as a world power, and with the transference of the American struggle to Canada by the capture of Montreal and Quebec the war was at an end. In 1762 the financial condition of France became so desperate that Choiseul was anxious for peace and he found George III and Lord Bute ready to abandon their Prussian ally, and even to give up the fruits of some of the brilliant victories of 1762 which brought Spain to her knees. [4]

The definitive treaty of Paris was signed February 10, 1763, [5] by the terms of which France ceded to Great Britain all of Canada and gave up her claim to the territory east of the Mississippi River, except the city of New Orleans, adding to this the right of the free navigation of the Mississippi. Spain received back Havana ceding Florida to England in return. A few weeks before signing the definitive treaty, France, in a secret treaty with Spain ceded to her the city of New Orleans and the vast region stretching from the Mississippi towards the Pacific. Thus was France divested of practically every inch of territory in America.

The French colony in the Illinois country had been originally established with the view of forming a connecting link between the colonies in Louisiana on the south and Canada at the northeast. La Salle himself had recognized the possible strategic value of such an establishment from both a commercial and military standpoint. ^[6] Before any settlements had even been made on the lower Mississippi, he and his associates had attempted in 1682 the formation of a colony on the Illinois River, near the present site of Peoria. ^[7] This the first attempt at western colonization was a failure. The opening of the following century saw the beginning of a more successful and permanent colony, when the Catholic missionaries from Quebec established their missions at Kaskaskia and Cahokia, ^[8] near the villages of the Illinois Indians. They were soon followed by hunters and fur traders, and during the first two decades of the eighteenth century a considerable number of families immigrated from Canada, thus assuring the permanency of the settlement.

Meanwhile the contemporaneous colony of Louisiana had grown to some importance, and in 1717, when the Company of the West assumed control of the province, the Illinois country was annexed. Prior to this time it had been within the jurisdiction of Quebec. This gave the Illinois country a period of prosperity, many new enterprizes being undertaken. Shortly after its annexation to Louisiana, Pierre Boisbriant was given a commission to govern the Illinois country, and among his instructions was an order to erect a fort as a protection against possible encroachments from the English and Spanish. About 1720 Fort Chartres was completed and became thereafter the seat of government during the French regime. In 1721 the Company of the West divided Louisiana into nine districts, ^[9] extending east and west of the Mississippi River between the lines of the Ohio and Illinois rivers. In 1732 Louisiana passed out of the hands of the Company of the West Indies, and, together with the Illinois dependency, became a royal province. ^[10] It remained in this status until the close of the Seven Years War. During this period its relation with Louisiana had become economic as well as political, all of its trade being carried on through New Orleans, and the southern colony often owed its existence to the large supplies of flour and pork sent down the river from the Illinois country. ^[11]

CHAPTER II.

THE OCCUPATION OF ILLINOIS.

By the treaty of Paris the title to the Illinois region passed to Great Britain, but Fort Chartres was not immediately occupied. Detachments of British troops had taken possession of practically every other post in the newly ceded territory as early as 1760. The occupation of the forest posts of Green Bay, Mackinac, St. Joseph, Ouitanon, Detroit, Fort Miami, Sandusky, Niagara and others seemed to indicate almost complete British dominion in the West. The transfer of the Illinois posts, however, remained to be effected, and although orders were forwarded from France in the summer of 1763 to the officers commanding in the ceded territory to evacuate as soon as the English forces appeared, ^[12] almost three years elapsed before this was accomplished; for soon after the announcement of the treaty of cession, that broad belt of Indian tribes stretching from the fringe of the eastern settlements to the Mississippi rose in open rebellion. ^[13] This unexpected movement had to be reckoned with before any thought of the occupation of the Illinois could be seriously entertained.

Of the two great northern Indian families, the Iroquois had generally espoused the English cause during the recent war, while the Algonquin nations, living in Canada, and the Lake and Ohio regions, had supported the French. At the close of the war the greater portion of the French had sworn fealty to the English crown; but the allegiance of their allies, the Algonquins, was at best only temporary. It was thought that, since the power of France had been crushed, there would be no further motive for the Indian tribes to continue hostilities; but from 1761 there had been a growing feeling of discontent among the western Indians. So long as France and Great Britain were able to hold each other in check in America, the Indian nations formed a balance of power, so to speak, between them. England and France vied with each other to conciliate the savages and to retain their good will. As soon, however, as English dominion was assured, this attitude was somewhat changed. The fur trade under the French had been well regulated, but its condition under the English from 1760 to 1763 was

deplorable. ^[14] The English traders were rash and unprincipled men ^[15] who did not scruple to cheat and insult their Indian clients at every opportunity. The more intelligent of the western and northern Indians perceived that their hunting grounds would soon be overrun by white settlers with a fixed purpose of permanent settlement. ^[16] This was probably the chief cause of the Indian uprising. There remained in the forests many French and renegade traders and hunters who constantly concocted insidious reports as to English designs and filled the savage minds with hope of succor from the King of France. ^[17] Many of the French inhabitation had since 1760 emigrated beyond the Mississippi, because, as the Indians thought, they feared to live under English rule. ^[18] This doubtless contributed something toward the rising discontent of the savages. Finally the policy of economy in expenses, which General Amherst entered upon, by cutting off a large part of the Indian presents, always so indispensable in dealing with that race, augured poorly for the Indians's future.

On the part of the mass of the Indians the insurrection was probably a mere outbreak of resentment; but Pontiac, the great chief of the Ottawas, had a clearer vision. He determined to rehabilitate French power in the west and to reunite all the Indian nations into one great confederacy in order to ward off the approaching dangers. During the years 1761-1762 the plot was developed. In 1762 Pontiac dispatched his emissaries to all the Indian nations. The ramifications of the conspiracy extended to all the Algonquin tribes, to some of the nations on the lower Mississippi and even included a portion of the Six Nations. The original aim of the plot was the destruction of the garrisons on the frontier, after which the settlements were to be attacked. The attack on the outposts, beginning in May, 1763, was sudden and overwhelming; Detroit, Fort Pitt, and Niagara alone held out, the remainder of the posts falling without an attempt at defense. Had the proclamation of 1763, which aimed at the pacification of the Indians by reserving to them the western lands, been issued earlier in the year, this devastating might have been avoided. Peaceful pacification was now out of the question. During the summers of 1763 and 1764 Colonel Bouquet raised the siege of Fort Pitt, penetrated into the enemy's country in the upper Ohio valley region and completely subdued the Shawnee and Delaware tribes upon whom Pontiac had placed every dependence. Previous to Bouquet's

second campaign, Colonel Bradstreet had advanced with a detachment along the southern shore of Lake Erie, penetrating as far west as Detroit, whence companies were sent to occupy the posts in the upper lake region. In the campaign as a whole the Bouquet expedition was the most effective. After the ratification of a series of treaties, in which the Indians promised allegiance to the English crown, the eastern portion of the rebellion was broken.

It now remained to penetrate to the Illinois country in order to relieve the French garrison. Pontiac had retired thither in 1764, after his unsuccessful attempt upon Detroit; there he hoped to rally the western tribes and sue for the support of the French. But as we shall see, his schemes received a powerful blow upon the refusal of the commandants to countenance his pleas.

To what extent Pontiac was assisted by French intriguers in the development of his plans may never be positively known. As has already been pointed out, French traders were constantly among the Indians, filling their minds with hopes and fears. That the plot included French officials may be doubted; although Sir William Johnson and General Gage seemed convinced that such was the case. ^[19] Their belief, however, was based almost wholly upon reports from Indian runners, whose credibility as witnesses may well be questioned. A perusal of the correspondence of the French officials ^[20] residing in Illinois and Louisiana, and their official communications with the Indians during this period goes far to clear them of complicity in the affair. ^[21]

General Gage, who succeeded Amherst as commander-in-chief of the British army in America in November, 1763, was convinced that the early occupation of the western posts was essential, ^[22] since it would in a measure cut off the communication between the French and Indian nations dwelling in that vicinity. The Indians, finding themselves thus inclosed would be more easily pacified. But the participation in the rebellion of the Shawnee and Delaware tribes of the upper Ohio river region precluded for a time the possibility of reaching the Mississippi posts by way of Fort Pitt, without a much larger force than Gage had at his command in the east; and the colonies were already avoiding the call for troops. ^[23] The only other available route was by way of New Orleans and the Mississippi River

whose navigation had been declared open to French and English alike by the treaty of Paris. Little opposition might be expected from the southern Indians toward whom a much more liberal policy had been pursued than with the northern tribes. Presents to the value of four or five thousand pounds had been sent to Charleston in 1763 for distribution among the southern nations which counter-acted in a large measure the machinations of the French traders from New Orleans. [24] The Florida ports, Mobile and Pensacola, were already occupied by English troops, and Gage and his associates believed, that with the co-operation of the French Governor of Louisiana a successful ascent could be made. [25]

Accordingly in January, 1764, Major Arthur Loftus, with a detachment of three hundred and fifty-one men from the twenty-second regiment embarked at Mobile for New Orleans, where preparations were to be made for the voyage. [26] A company of sixty men from this regiment were to be left at Fort Massac on the Ohio River, while the remainder were to occupy Kaskaskia and Fort Chartres. [27] At New Orleans boats had to be built, supplies and provisions procured, and guides and interpreters provided. [28] The expedition set out from New Orleans February 27. Three weeks later the flotilla was attacked by a band of Tonica Indians near Davion's Bluff, or Fort Adams, [29] about two hundred and forty miles above New Orleans. After the loss of several men in the boats composing the vanguard, Loftus ordered a retreat, and the expedition was abandoned. Depleted by sickness, death and desertion the regiment made its way from New Orleans back to Mobile. [30]

Major Loftus placed the blame for the failure of his expedition upon Governor D' Abadie and other French officials at New Orleans. [31] There is probably sufficient evidence, however, to warrant the conclusion that his accusations against the Governor were without foundation. The correspondence of D' Abadie, Gage, and others indicates that official aid was given the English in making their preparations for the journey, [32] and letters were issued to the commandants of the French posts on the Mississippi to render the English convoys all the assistance in their power [33]. There may have been some justification for the suspicion of Loftus that the intriguers were at work, for the French as a whole were not in sympathy with the attempt; the success of the English meant the cessation of the

lucrative trade between New Orleans and Illinois. They were no doubt delighted at the discomfiture of the English officer, for when some of the chiefs engaged in the ambushade entered New Orleans they were said to have been publicly received. ^[34]

Granting, however, the machinations of the French, the reason for the failure of Loftus may be found in part in the almost total lack of precautions adopted before undertaking the journey. Governor D' Abadie had given the English officer warning of the bad disposition of a number of tribes along the Mississippi River, among whom Pontiac had considerable influence, and had assured him that unless he carried presents for the Indians, he would be unable to proceed far up the river. ^[35] The policy of sending advance agents with convoys of presents for the Indians was successful the following year when the Illinois posts were finally reached from the east; but no such policy was adopted at this time. ^[36] No action was taken to counter-act any possible intrigues on the part of the French. D' Abadie's advice was not heeded, and his prophecy was fulfilled. General Gage in his official correspondence implied that he did not think sufficient care had been exercised to insure success, and expressed his belief that if Loftus would make use of the "necessary precautions" he might get up to the mouth of the Ohio with little interruption. ^[37] This want of judgement, therefore, accounts in a large degree for the unfortunate termination of the plans of an approach from the south.

The news of the defeat of Loftus had two results. First, it gave Pontiac renewed hope that he might be able to rally again the western and northern Indians, and, with French assistance, block the advance of the English. In the second place it led General Gage to determine upon an advance from the east, down the Ohio River, which was made practicable by the recent submission of the Delaware Indians.

Meanwhile the Illinois country in 1764 presented an anomalous situation. St. Ange was governing, in the name of Louis XV, a country belonging to another king. He was under orders to surrender the place as soon as possible to its rightful owner; but the prospect for such an event seemed remote. He was surrounded by crowds of begging, thieving savages; and the emissaries of the greatest of Indian chieftains, Pontiac, were constantly petitioning for his active support against the approaching

English. A considerable portion of the French traders of the villages were secretly, and sometimes openly, supporting the Indian cause, which added greatly to the increasing embarrassment of the commandant. So distressing became the situation that Neyon de Villiers, St. Ange's predecessor, called the latter from Vincennes on the Wabash, and left the country in disgust, taking with him to New Orleans sixty soldiers and eighty of the French inhabitants. ^[38] He had shortly before indignantly refused to countenance the proposals of Pontiac, and had begged the Indians to lay down their arms and make peace with the English. ^[39]

The news of Loftus' defeat aroused Pontiac the thought of the possibility of meeting and repelling the advance from the east as it had been met and repelled in the south. In spite of the news of the defeat of his allies by Bouquet and the report that preparations were being made by his victorious enemy to advance against him, Pontiac determined to make a last supreme effort. By a series of visits among the tribes dwelling in the Illinois, on the Wabash and in the Miami country, he succeeded in arousing in them the instinct of self-preservation, in firing the hearts of all the faltering Indians and in winning the promise of their co-operation in his plan of defense. He was in this temper when he met and turned back Captain Thomas Morris in the Miami country early in the autumn of 1764. Morris had been sent by Bradstreet from the neighborhood of Detroit with messages to St. Ange in the Illinois country, whence he was to proceed to New Orleans. ^[40] After being maltreated and threatened with the stake, Morris effected an escape and made his way to Detroit. ^[41] It was during his interview with Pontiac that the latter informed Morris of the repulse of Loftus, of the journey of his emissaries to New Orleans to seek French support, and of his determination and that of his Indian allies to resist the English to the last. ^[42]

A few months later, in February, 1765, there arrived at Fort Chartres an English officer, accompanied by a trader named Crawford. They were probably the first Englishmen to penetrate thus far into the former French territory since the beginning of the war. ^[43] They had been sent from Mobile by Major Farmer, the commandant at that place, to bring about the conciliation of the Indians in the Illinois. ^[44] Instead of following the Mississippi, they worked their way northward through the great Choctaw

and Chicksaw nations to the Ohio, descended the latter to the Mississippi and thence to the Illinois villages. [45] Although St. Ange received them cordially [46] and did all in his power to influence the savages to receive the English, [47] the mission of Ross was a failure. The Indians had nothing but expressions of hatred and defiance for the English; even the Missouri and Osages from beyond the Mississippi had fallen under the influence of Pontiac. [48] Ross and his companion remained with St. Ange nearly two months; but about the middle of April they were obliged to go down the river to New Orleans. [49]

During the winter of 1764-1765 preparations were made to send a detachment of troops down the Ohio from Fort Pitt to relieve Fort Chartres. To pave the way for the troops Gage dispatched two agents in advance. He selected George Croghan, Sir William Johnson's deputy, for the delicate and dangerous task of going among the Indians of that country to assure them of the peaceful attitude of the English, to promise them better facilities for trade and to accompany the promise with substantial presents. [50] The second agent was Lieutenant Fraser, [51] whose mission was to carry letters to the French commandant and a proclamation for the inhabitants. [52] January 24, 1765, Fraser and Croghan set out from Carlisle, Pennsylvania, [53] followed a few days later by a large convoy of presents. [54] During the journey, the convoy was attacked by a band of Pennsylvania borderers, [55] and a large part of the goods destined for the Indians were destroyed, [56] together with some valuable stores which certain Philadelphia merchants were forwarding to Fort Pitt for the purpose of opening up the trade as early as possible. [57] Croghan therefore found it necessary to tarry at Fort Pitt to replenish his stores and to await the opening of spring. [58] But another matter intervened which forced him to postpone his departure for more than two months. A temporary defection had arisen among the Shawnee and Delaware Indians. [59] They had failed to fulfil some of the obligations imposed upon them by Bouquet in the previous summer, and there was some fear lest they would not permit Croghan to pass through their country. His influence was such, however, that, in an assembly of the tribes at Fort Pitt, he not only received their consent to a safe passage, but some of their number volunteered to accompany him. [60]

Meanwhile Lieutenant Fraser, Croghan's companion, decided to proceed alone, inasmuch as Gage's instructions to him were to be at the Illinois early in April. ^[61] On March 23 he departed, accompanied by two or three whites and a couple of Indians, ^[62] and reached the Illinois posts in the latter part of April, shortly after the departure of Lieutenant Ross and his party. Here Fraser found many of the Indians in destitution and some inclined for peace. ^[63] Nevertheless, instigated by the traders and encouraged by their secret supplies, the savages as a whole would not listen to Fraser; they threatened his life, and threw him into prison, and he was finally saved by the intervention of Pontiac himself. ^[64] Fraser felt himself to be in a dangerous situation; unable to hear from Croghan, whom he was expecting every day, and daily insulted and maltreated by the drunken savages, he took advantage of his discretionary orders and descended the Mississippi to New Orleans. ^[65] Although the French traders continued to supply the Indians with arms and ammunition, and buoy up their spirits by stories of aid from the king of France, Pontiac himself was being rapidly disillusioned. He had given Fraser the assurance that if the Indians on the Ohio had made a permanent peace, he would do likewise. ^[66] St. Ange continued to refuse the expected help, ^[67] and when the news came of the failure of the mission to New Orleans and of the transfer of Louisiana to Spain, the ruin of the Indian cause was complete.

Having adjusted affairs with the Indians at Fort Pitt, Croghan set out from there on May 15th with two boats, accompanied by several white companions and a party of Shawnee Indians. ^[68] In compliance with messages from Croghan, representatives of numerous tribes along the route met him at the mouth of the Scioto and delivered up a number of French traders who were compelled to take an oath of allegiance to the English crown, or pass to the west of the Mississippi. ^[69] The only other incident of importance on this voyage was the attack of the Kickapous and Mascoutin Indians near the mouth of the Wabash on June 8th, ^[70] which contributed greatly to the success of the mission. After the attack in which two whites and several Shawnees were killed, the assailants expressed their profound sorrow, declaring that they thought the party to be a band of Charokees with whom they were at enmity. ^[71] Nevertheless, they plundered the stores and carried Croghan and the remainder of the party to Vincennes, a small

French town on the Wabash. Croghan was now separated temporarily from his companions and carried to Fort Ouiatanon, about 210 miles north of Vincennes. The political blunder of the Kickapous in firing upon the convoy now became apparent; [72] they were censured on all sides for having attacked their friends the Shawnees, since the latter might thus be turned into deadly enemies. [73] During the first week of July deputations from all the surrounding tribes visited Croghan, assuring him of their desire for peace and of their willingness to escort him to the Illinois where Pontiac was residing. [74] July 11th, Maisonville, whom Fraser had a few weeks before left at Fort Chartres, arrived at Ouiatanon with messages from St. Ange requesting Croghan to come to Fort Chartres to arrange affairs in that region. [75] A few days later Croghan set out for the Illinois, attended by a large concourse of savages; but he had advanced only a short distance when he met Pontiac himself who was on the road to Ouiatanon. They all returned to the fort where, at a great council, Pontiac signified his willingness to make a lasting peace and promised to offer no further resistance to the approach of the English troops. [76] There was now no need to go to Fort Chartres; instead Croghan turned his steps toward Detroit, where another important Indian conference was held in which a general peace was made with all the western Indians. [77]

Immediately after effecting an accomodation with Pontiac at Ouiatanon, Croghan sent an account of the success of his negotiations to Fort Pitt. [78] Here Captain Stirling with a detachment of about one hundred men of the 42d or Black Watch regiment, had been holding himself in readiness for some time, waiting for a favorable report before moving to the relief of Fort Chartres. Although the 34th regiment under Major Farmer was supposed to be making its way up the Mississippi to relieve the French garrison in Illinois, General Gage would not depend upon its slow and uncertain movements. [79] Upon receipt of the news, on the 24th of August, Stirling left Fort Pitt [80] and began the long and tedious journey. Owing to the season of the year the navigation of the Ohio was very difficult, forty-seven days being required to complete the journey. [81] The voyage, on the whole, was without incident until about forty miles below the Wabash River. Here Stirling's force encountered two boats loaded with goods, in charge of a French trader, who was accompanied by some thirty Indians and

a chief of the Shawnees, who had remained in the French interest. ^[82] On account of the allegations of a certain Indian that his party had planned to fire on the English before they were aware of the latter's strength, Stirling became apprehensive lest the attitude of the Indians had changed since Croghan's visit. He therefore sent Lieutenant Rumsey, with a small party by land from Fort Massac to Fort Chartres, in order to ascertain the exact situation and to apprise St. Ange of his approach. ^[83] Rumsey and his guides, however, lost their way and did not reach the villages until after the arrival of the troops. ^[84] Sterling arrived on the 9th of October; and it is said that the Indians and French were unaware of his approach until he was within a few miles of the village, and that the Indians upon learning of the weakness of the English force, assumed a most insolent and threatening attitude. ^[85] On the following day St. Ange and the French garrison were formally relieved, ^[86] and with this event, the last vestige of French authority in North America, except new Orleans, passed away.

CHAPTER III.

STATUS OF THE ILLINOIS COUNTRY IN THE EMPIRE.

Before entering upon the more detailed study of events in the Illinois country during the period of the British occupation, it is necessary to take into consideration certain general aspects of the subject which will enable us to understand more clearly the bearing of those events. The relation of that country to the empire and the view held by British statesmen of the time relative to its status are problems which naturally arise and demand solution. What was the nature of the government imposed upon the French in Illinois after its occupation? Is the hitherto prevailing opinion that the British government placed the inhabitants of those villages under a military government any longer tenable? Was the government *de jure* or *de facto*?

The treatment received by the settlements in the Northwest and West in general was fundamentally different in nature from that accorded other portions of the new empire. By the terms of the Proclamation of 1763, [\[87\]](#) civil governments were created for the provinces of Quebec, East Florida, West Florida, and Grenada, while all the western territory outside the prescribed limits of those colonies, including a large portion of southern Canada of today, was reserved as a vast hunting ground for the Indian nations. No mention whatsoever is made in the Proclamation concerning the settled portions of the West and since it is, therefore, impossible to ascertain in this document their governmental status, we will examine the official correspondence of the ministry which immediately proceeded the issuance of the Proclamation to find, if possible, what the directors of the British colonial policy had in mind.

When the question of the Proclamation was under discussion by the Ministry in the summer of 1763, two opposing views with reference to the West were for a time apparent in the ministry. It appears to have been the policy of Lord Egremont, at that time Secretary for the Southern Department, which included the management of the colonies, to place the unorganized territory within the jurisdiction of some one of the colonies

possessing a settled government, preferably Canada. ^[88] It was at least his aim to give to the Indian country sufficient civil supervision so that criminals and fugitives from justice from the colonies might be taken. That he did not intend to extend civil government to the villages or any of the French inhabitants of the West seems clear: his only reference is to the "Indian country" and to "criminals" and "fugitives from justice."

Lord Shelburne, President of the Board of Trade and a member of the Grenville ministry, and his colleagues were of the opinion that the annexation of the West to Canada might lend color to the idea that England's title to the West came from the French cession, when in fact her claim was derived from other sources; that the inhabitants of the province to which it might be annexed would have too great an advantage in the Indian trade; and finally that such an immense province could not be properly governed without a large number of troops and the governor would thus virtually become a commander-in-chief. ^[89] Shelburne then announced his plan of giving to the commanding general of the British army in America jurisdiction over the West for the purpose of protecting the Indians and the fur trade. ^[90] Lord Halifax, who succeeded to Egermont's position at the latter's death in August, 1763, fell in with Shelburne's views. But the commission to the commanding general does not appear to have been issued; for Hillsborough, who succeeded Shelburne as President of the Board of Trade in the autumn of 1763, favored a different policy. There is nothing, however, to indicate that Shelburne and his advisers had any thought of the government of the French colonies. There is no hint in any of this correspondence that the ministry had any idea of the existence of the several thousand French inhabitants of the West. ^[91]

There remain one or two documents in which we might expect to find some reference to the government of the French settlers. The authors of that part of the Proclamation of 1763 which provided for the reservation of the Indian lands and the regulation of the trade, ^[92] had in contemplation the formation of an elaborate plan comprehending the management of both in the whole of British North America. ^[93] It was left to Hillsborough, Shelburne's successor as President of the Board of Trade, to direct the formulation of the plan, which was finished in 1764. The details of this program will be taken up in a later chapter, ^[94] and it will therefore suffice

to note the presence or absence of any provisions for the French. The chief object of the plan seems to have been to bring about a centralization in the regulation of the trade and the management of the Indians, and in no place is there any intimation that its provisions have any application to the government of the French residing at the various posts. ^[95]

Turning to another source we find a document addressed directly to the inhabitants of the Illinois country, dated in New York, December 30, 1764 and signed by General Thomas Gage. ^[96] Mention has already been made in another connection of the unsuccessful mission of Lieutenant Fraser to Illinois in the spring of 1765, when he carried this proclamation to the inhabitants. But its contents were not announced until the entry of Captain Sterling in October of that year. This proclamation related solely to guarantees by the British government of the right of the inhabitants under the treaty of Paris: freedom of religion, the liberty of removing from or remaining within English territory and the requirements as to taking the oath of allegiance made up its contents. As to whether the inhabitants were to enjoy a civil government or be ruled by the army there is no intimation.

Laying aside the barren papers of 1763-1765 and giving attention to the documentary material after those dates proves much more productive. We are thereby enabled to arrive at some pretty definite conclusions. Fortunately there were a few men in authority during that period who had some interest in the interior settlements, and who, from their official positions realized the difficulties of the problem. Such men have left expressions of opinion and stray bits of information which leave us in little doubt as to the governmental status of the Illinois country. General Thomas Gage, Sir William Johnson, and Lord Hillsborough are perhaps the most representative examples. Gage, who was commander-in-chief of the American army throughout this period, with headquarters in New York City, was in direct communication both with his subordinates in Illinois and the home authorities. He was in a position to know, in general, the state of affairs in the West as well as to keep in touch with ministerial opinion. Sir William Johnson, by virtue of his office as Superintendent of Indian affairs for the northern district, was in a peculiarly strategic position to acquire information. His Indian agents were stationed at all the western posts and he was in constant correspondence with the Board of Trade relative to Indian and trade conditions. From the ministry itself the correspondence of Lord

Hillsborough best reflects the prevailing opinion of the government. He was one of the few governmental authorities who took any considerable interest in the western problem and information coming from him must, therefore, have some weight.

That the British commandant of the fort in the Illinois country had no commission to govern the inhabitants, except perhaps that power, which, in the absence of all other authority, naturally devolves upon the military officer, seems amply clear from a recommendation transmitted by General Gage to his superior shortly after the occupation of Fort de Chartres. "If I may presume to give my opinion further on this matter, I would humbly propose that a Military Governor should be appointed for the Illinois (sic) as soon as possible. The distance of that Country from any of the Provinces being about 1400 Miles, making its Dependence upon any of them impractical, and for its Vicinity to the French Settlements, no other than a Military Government would answer our purpose." [\[97\]](#) In the following year he took a similar point of view in a communication to his co-laborer in America: "I am quite sensible of the irregular behavior of the Traders and have intimated to his Majesty's Secretary of State what I told the Board of Trade four or five years ago: That they must be restrained by Law, and a Judicial Power invested in the officer Commanding at the Posts to see such Law put in force. And without this, Regulations may be made, but they will never be observed." [\[98\]](#)

With the condition of comparative anarchy in the Illinois country during this period and indeed at all the western posts and throughout the Indian country the authorities seemed unable to combat successfully. Had all the regulations outlined in the plan for the management of Indian affairs, [\[99\]](#) been put into operation the Indian department would have been able to cope more successfully with that phase of the situation. But neither military nor Indian departments had legal authority to take any action whatsoever. As Johnson, in speaking of his inability to handle the situation for lack of sufficient power, declared in 1767 that "the authority of commissaries is nothing, and both the Commanding Officers of Garrisons and they, are liable to a civil prosecution for detaining a Trader on any pretence." [\[100\]](#) Probably more emphatic still the commanding general four years later in writing of the disturbances, said: "And I perceive there has been wanting

judicial powers to try and determine. There has been no way to bring Controversys & Disputes properly to a determination or delinquents to punishment." [\[101\]](#)

There is probably some justification for the current belief that the government placed the inhabitants under a military rule, inasmuch as the actual government proved in the last analysis to be military. But that the British ministry consciously attached the interior settlements to the military department is far from the truth. Such a system was probably contemplated by no one, particularly between the years 1763 and 1765 when the re-organization of the new acquisitions was under discussion. The greater part of the new territory was the seat of the fur trade and the desire for the development of that industry controlled in the main the policy of the ministry relative to the disposition of the peltry districts and the interests of the settlements were completely ignored. Secretary Hillsborough, who helped formulate the western policy in 1763 and 1764 doubtless gave the most adequate explanation when in 1769, he wrote: "With regard to the Posts in the interior Country considered in another view in which several of your letters have placed them; I mean as to the settlements formed under their protection, which, not being included within the jurisdiction of any other Colony are exposed to many Difficulties & Disadvantages from the Want of some Form of Government necessary to Civil Society, it is very evident that, if the case of these Settlements had been well known or understood at the time of forming the conquered Lands into Colonies, some provision would have been made for them, & they would have been erected into distinct Governments or made dependent upon those Colonies of which they were either the offspring, or with which they did by circumstances and situation, stand connected. I shall not fail, therefore, to give this matter the fullest consideration when the business of the Illinois Country is taken up." [\[102\]](#)

That the occupation of Fort Chartres became anything more than temporary was due to the necessity of being prepared to crush a possible uprising of the savages and to repel the constant invasion of the French and Spanish traders [\[103\]](#) from beyond the Mississippi, whose influence over the Indians, it was feared, would be detrimental to the peace of the empire. In its policy of retrenchment owing to the trouble with the colonies, the

government at various times contemplated the withdrawal of the troops, but each time the detachment was allowed to remain the sole reason given was to guard that portion of the empire against the French and Indians.

In the course of this inquiry relative to the legal status of Illinois no mention has been made of the extension or non-extension of English law and custom to the West after its cession. This is one of the more important general aspects of the western problem and deserves some attention inasmuch as it may throw some light on the legal position of the settlements. During the seventeenth and eighteenth centuries, the great era of English colonization, the necessity of fixing definitely the legal status of the colonies called forth a series of judicial opinions and legal commentaries; it is to these we have to look to determine the theory held regarding the application of English law to the colonies and particularly to conquered provinces. In general it may be said that Blackstone represents the usual view taken by jurists during these two centuries. In his commentaries published in 1765 he declared that "in conquered or ceded countries, that have already laws of their own, the king may indeed alter and change those laws, but till he actually does change them, the ancient laws of the country remain. ^[104]" This opinion is supported by the authority of Lord Mansfield in his decision in the case of *Campbell vs Hall*, ^[105] rendered in 1774, which involved the status of the island of Granada, a conquered province. He laid down in this decision the general principle that the "laws of a conquered country continue in force until they are altered by the conqueror. The justice and antiquity of this maxim are incontrovertible: _____" ^[106]

The Proclamation of 1763 which had definitely extended the laws of England to the new provinces, ^[107] made no such provisions for the West, nor did the crown ever take such action. We may, therefore, lay down the general principle that the British Government was obliged to govern her new subjects in this region according to the laws and customs hitherto prevailing among them; any other course would manifestly be illegal. The commanding general of the army in America and his subordinates, who were embarrassed by the presence of this French settlement for which no provision had been made by the ministry, and who found it necessary to assume the obligation of enforcing some sort of order in that country, had

no power to displace any of the laws and customs of the French inhabitants. It will be pointed out in succeeding chapters that this general principle, while adhered to in many respects, was not uniformly carried out.

It is apparent from the foregoing considerations that the government of the Illinois people was de facto in nature. It had no legal foundations. Every action of the military department was based on expediency; although this course was in general acquiesced in by the home authorities, all the officials concerned were aware that such a status could not continue indefinitely. But it did continue for about a decade, during which time the inhabitants were at the mercy of some six or seven different military commandants. In 1774, however, Parliament passed the Quebec Act, which provided, among other things, for the union of all the western country north of the Ohio River, and which but for the cataclysm of the American revolution meant civil government for the whole region.

CHAPTER IV.

TRADE CONDITIONS IN ILLINOIS, 1765-1775.

The peltry trade had been one of the elements which had accentuated, throughout the eighteenth century, the difficulties between France and England in the Ohio and Mississippi valleys. It was the chief support of the French government in Canada and now that the English were in undisputed possession of the great peltry districts it became apparent that the management of the trade deserved most serious consideration. It was becoming of increasing importance to the manufacturing monopoly of the mother country, and therefore, in the minds of English statesmen, deserved far more attention than did the few thousand French colonists scattered throughout the West. The desire to increase this branch of commerce dictated in a large measure those clauses in the Proclamation of 1763 which forbade the formation of settlements or the purchase of lands within the Indian reservation, but at the same time declared that the trade with the Indians should be free and open to all English subjects alike. Again, the plan proposed in 1764 related solely to the management of the Indians and to the regulation of the trade with a view to making the English monopoly of intrinsic value to the empire. Even towards the close of the period under consideration there is little or no change of policy so far as official utterances are concerned. In 1772 in a report to the crown, the Lords of Trade made the following declaration: "The great object of colonization upon the continent of North America has been to improve and extend the commerce and manufactures of this kingdom. It does appear to us that the extension of the fur trade depends entirely upon the Indians being undisturbed in the possession of their hunting grounds, and that all colonization does in its nature and must in its consequence operate to the prejudice of that branch of commerce. Let the savages enjoy their deserts in quiet. Were they driven from their forests the peltry trade would decrease."

[\[108\]](#)

Under the French regime the western Indians and their trade had been managed with greater success than had the tribes living under English

influence. The success of France was due largely to her policy of centralization combined of course with the genial character of the French fur trader and the influence of the missionary. The English, on the contrary, had managed their relations with the Indians through the agency of the different colonies, without a semblance of union or co-operation: each colony competed for the lion's share of the trade, a policy which resulted disastrously to the peace of the empire.

In 1755 the English government under the influence of Halifax, president of the Board of Trade, took over the political control of the Indians, and superintendents were appointed by the crown to reside among the different nations. ^[109] A little later in 1761 the purchase of Indian lands was taken out of the hands of the colonies and placed under the control of the home government. ^[110] No further change is to be noted until after the issue of the war was known, when the whole question was taken under consideration. The most important step yet taken respecting the Indian and his concomitant, the fur trade, appeared in the Proclamation of 1763, issued in October following the treaty of cession. Some of its provisions for the West have already been noted. In addition to reserving for the present the unorganized territory between the Alleghany mountains and the Mississippi River for the use of the Indians, the government guaranteed the Indians in the possession of those lands by announcing in the Proclamation that no Governor or Commander-in-chief would be allowed to make land grants within their territory, and further all land purchases and the formation of settlements by private individuals without royal consent were prohibited. Trade within this reservation was made, however, free to all who should obtain a license from the Governor or Commander-in-chief of the colony in which they resided. ^[111]

The policy was now for the central government to take the Indian trade under its management; and in the course of the year following the issuance of the Proclamation an elaborate plan was outlined by Hillsborough ^[112] comprehending the political and commercial relations with all the Indian territory.

According to the proposed scheme ^[113] British North America was to be divided, for the purpose of Indian management, into two districts, a northern and a southern, each under the control of a general superintendent

or agent appointed by the crown: the Ohio River being designated as the approximate line of division. In the northern district, with which we are here concerned, the regulation of such Indian affairs as treaties, land purchases, questions of peace and war, and trade relations were to be given into the hands of the superintendent who was to be entirely free from outside interference: without his consent no civil or military officer could interfere with the trade or other affairs of any of the Indian tribes. Three deputies were to be appointed to assist the superintendent and at each post a commissary, an interpreter, and a smith were to reside, acting under the immediate direction of the superintendent and responsible only to him for their conduct. For the administration of justice between traders and Indians and between traders themselves, the commissary at each post was to be empowered to act as justice of the peace in all civil and criminal cases. In civil cases involving sums not exceeding ten pounds an appeal might be taken to the superintendent. The Indian trade was to be under the direct supervision of the general superintendent. Traders who desired to go among the Indians to ply their trade could do so by obtaining a license from the province from which they came. The region into which the trader intended to go was to be clearly defined in the license and each had to give bond for the observance of the laws regulating the trade. The superintendent, together with the commissary at the post and a representative of the Indians were to fix the value of all goods and traders were forbidden to charge more than the price fixed; for the still better regulation of the trade, it was to be centered about the regularly fortified and garrisoned forts. Regulations for the sale of land were also proposed; outside the limits of the colonies no individual or company could legally purchase land from the Indians unless at a general meeting of the tribe presided over by the superintendent.

The plan thus outlined by the ministry was never legally carried into effect, although the superintendents used the outline as a guide in their dealings with the Indians. The original intention had been to levy a tax on the Indian trade to defray the expense of putting the scheme into operation, but it was found that the budget was already too greatly burdened; and the Stamp Act disturbance which soon followed illustrated the possible inexpediency of imposing such a duty. [\[114\]](#)

The foregoing considerations serve to indicate the importance the ministry attached to the Indian trade in general. But what of the trade in the

Illinois country? This region had been one of the great centers of the Indian trade under the French regime; and, in addition, the French inhabitants had been one of the main supports of New Orleans since its foundation early in the century. The commercial connection between the Illinois villages and New Orleans had never been broken, and at the time of the occupation of Illinois in 1765 French fur traders and merchants still plied their traffic up and down the Mississippi River. Now that the title to this trade center passed to England it was expected that the volume of trade would be turned eastward from its southerly route. The necessity for this was patent if any solid benefits were to accrue to the empire from the cession. ^[115]

The home and colonial authorities early saw the importance of the redirection of the trade. They hoped and expected that a trade would be opened with the Indians in and about the Illinois country immediately after the active occupation by the English troops. ^[116] A large number of individual traders were early aware of this and representatives of some of the large trading corporations of the East were also preparing to take advantage of the early opening of the trade. In 1765 Fort Pitt became the great rendezvous for this element, and when the army reached Fort Chartres in October, 1765, it was followed as soon as the season of the year would permit, by the traders with their cargoes to exchange for the Indians' furs. Among the more important figures was George Morgan, ^[117] a member of the firm of Baynton, Wharton, and Morgan of Philadelphia, ^[118] and the firm's personal representative at the Illinois, where he first appeared early in 1766, ^[119] remaining there the greater part of the next five years. ^[120] Other representatives of this company left Fort Pitt in March of the same year with a large cargo of goods, which reached Fort Chartres during the summer. ^[121] Firms such as Franks and Company of Philadelphia and London and Bently and Company of Manchac also traded extensively in the Illinois during the following years: all the larger British companies becoming rivals for that portion of the Indian trade which the English were able to command.

Other and perhaps greater sources of profit to the English merchants lay in the privilege of furnishing the garrison with provisions ^[122] and the Indian department with goods for Indian presents. ^[123] Although the houses of Baynton, Wharton, and Morgan, and Franks and Company were usually

competitors for the former privileges, the latter company generally had the monopoly. ^[124] On the other hand, Baynton, Wharton, and Morgan derived their greatest profits from the sale of enormous quantities of goods to the government through the Indian department for distribution among the Indians accustomed to assemble at the Illinois. ^[125] But whether all these houses received profits commensurate with the risks undertaken is problematical. ^[126] In the Indian trade, in which all the merchants were interested, they not only had to compete with each other and with independent English traders, but with the French and Spanish who had not ceased to ply their trade among their old friends the Indians. This continuance of foreign traders in British territory was probably the most serious problem in the trade situation. Not only did it affect English traders but the interests of the empire itself were seriously threatened by the presence within its limits of unlicensed foreign traders.

It is therefore evident that the close of hostilities between France and England in 1763 and the formal transfer of Canada and the West to Great Britain by no means closed the intense rivalry between the fur trading elements of the two nations for predominance in the western trade: it rather accentuated it. As has already been suggested, France, until cession of the West, had naturally possessed the sphere of influence among the savages of the Mississippi Valley and Canada, and consequently the monopoly of the fur trade accrued to her subjects. In the upper Ohio river region and among the tribes bordering on or living within the limits of the English colonies, the British, during the first half of the eighteenth century, were either strong rivals of the French or were completely dominant. And it was generally expected that after the cession of the West the British would inherit the influence of the French among the Indians and succeed to the monopoly of the fur trade just as Great Britain had succeeded to the sovereignty of the territory itself. But the Conspiracy of Pontiac, due in large part to the machinations of the French traders, postponed for a considerable period the entry of the British traders, during which time the French became more strongly entrenched than ever in the affections of the savages.

The character of the French fur traders has already been noted. Their methods had from the beginning been different from those pursued by their neighbors and rivals: they lived among the Indians, affected their manners,

treated them kindly and respectfully, and supplied all their wants, while the missionary, the connecting link between the two races, was ever present. This association of religion was one of the causes of the success of the French in gaining such a permanent foothold in the affections of the Indians, but was entirely absent in the British relation with that race. The English traders were in general unscrupulous ^[127] in their dealings with the savages and deficient of that tact which enabled Frenchmen to overcome the natural prejudice of the Indian and acquire an interest with him which would be difficult to sever. In that section of the Indian country where the influence of Great Britain was such that her traders could go among the Indians, there was always considerable dissatisfaction on account of the methods employed by the large number of independent and irresponsible traders. Many carried large quantities of rum, some dealing in nothing else. ^[128] English traders frequently attended public meetings of Indians, gave them liquor during the time for business and defrauded them of their furs. ^[129] This abuse was one of the great causes of complaint against British traders. ^[130] Indeed, wherever they participated in the trade, its condition was deplorable. Many of the independent traders had little or no credit so that the legitimate merchants suffered as well as the Indians. ^[131] They adopted various expedients to draw trade from each other, one of which was to sell articles below first cost, thus ruining a large number of traders. ^[132] Fabrications dangerous to the public were frequently created to explain the price and condition of goods. ^[133] But probably more injurious still to imperial interests, was the fact that whole cargoes of goods were sometimes sold by English firms to French traders thus enabling the latter to engross a great part of the trade, ^[134] depriving the empire of the benefit of the revenue accruing from the importation of furs into England. This practice was probably followed to a greater degree in the farther West, where the French continued to have a monopoly in the trade.

It had been expected that the Illinois villages would be the center of trade for the English side of the upper Mississippi Valley just as it had been one of the centers during the French regime. ^[135] But, except for the few tribes of Illinois Indians in the immediate vicinity, very few savages found their way to these posts for trading purposes. English traders, on the other hand, did not trust themselves far beyond this narrow circle. ^[136] But their

French and Spanish rivals from Louisiana, many of whom formally lived in the Illinois, carried on a trade in all directions, both by land and by water. [137] They ascended the Ohio, Wabash, and Illinois rivers [138] and crossed the Mississippi River above the Illinois River, plying their traffic among the tribes in the region of the Wisconsin and Fox rivers. [139] This was probably the most productive area in the Mississippi Valley in the supply of fur bearing animals. The Mississippi River from its junction with the Illinois northward was also considered especially good for the peltry business: the otter, beaver, wolf, cervine, and marten were to be found in abundance. [140] But the British traders dared not venture into that quarter. The loss of this trade, however, can scarcely be attributed to their misconduct, for the French had never allowed it to pass from their own hands. The latter continued to intrigue with the Indians throughout the greater part of this period just as they had prior to 1765. As we have seen they pointed out to the savages how they would suffer from the policy of economy practiced by the British government. [141] Thus by giving presents and circulating stories and misrepresentations the French subjects of Spain attempted to checkmate every move of the English. [142] The Indians were constantly reminded of the bad designs on the part of the English, and were encouraged with unauthorized promises of aid in case they took up the hatchet in defense of their hunting grounds. [143]

This state of affairs continued throughout the greater part of the period, although it was probably modified to some extent after 1770, for in that year O'Reilly, the Spanish governor of Louisiana, issued an order to all the commandants in that colony to prohibit the inhabitants crossing the river in the pursuit of trade and whenever any excesses were committed satisfaction was to be given the English commandant according to the laws of nations. [144]

During the first years of the British occupation there was considerable friction in the contact between the two alien peoples in the Illinois villages. In spite of the fact that the French who remained became subjects of Great Britain there was for several years sharp competition between the English and French residents in the vicinity of the villages. [145] The latter were on terms of friendship with the savages and could go into any part of the country without difficulty and those Indians who came to Fort Chartres to

trade generally preferred to deal with their trusted friends. The French often carried the packs of furs thus obtained across the river to St. Louis or transported them directly to the New Orleans market. Although the British merchants were occasionally to pool their interests with French residents, such cases were exceptional prior to 1770. In that year, however, General Gage informed the home government that "the competition between his Majestys' old and new Subjects is greatly abated & must by degrees subside, for if carried to extremes it would be very prejudicial to both." [\[146\]](#)

We have seen in the foregoing study how the British traders were handicapped in the prosecution of the trade by their French rivals. Naturally the large quantities of furs and skins obtained by such contraband traders as well as by the French residents of Illinois were taken directly to New Orleans and there embarked for the ports of France and Spain. These foreign interlopers, however, only followed the course they had long been accustomed to take. On the other hand it was expected by the government that the traders who carried English manufactured goods down the Ohio River would return by the same route with their cargoes of peltry for the purpose of transporting them to England. In this the aim of the ministry miscarried. English traders and merchants followed the line of least resistance: the route down the Mississippi to New Orleans was easier and quicker than up the Ohio and across the country to the sea-coast. [\[147\]](#) Moreover, the New Orleans market was attractive, for peltries sold at a higher price there than in the British market. [\[148\]](#) The tendency of the English traders and merchants to follow this course was discovered soon after the occupation. [\[149\]](#) In a communication to Secretary Shelburne in 1766 Gage informed the government that "it is reported that the Traders in West Florida carry most of their Skins to New Orleans, where they sell them at as good a price as is given in London. As I had before some Intelligence of this, the Officer commanding at Fort Pitt had Orders to watch the Traders from Pensilvania (sic) who went down the Ohio in the Spring to Fort Chartres; & to report the quantity of Peltry they should bring up the Ohio in the Autumn. He has just acquainted me that the traders do not return to his Post, that they are gone down the Mississippi with all their Furrs and Skinns under the pretense of embarking them at New Orleans for England." [\[150\]](#) A few weeks later he wrote again in a similar strain: "That Trade will go with the stream is a maxim found to be true from all Accounts

that have been received of the Indian Trade carried on in that vast Tract of Country which lies in the Back of the British Colonies; and that the peltry acquired there is carried to the Sea either by the River St. Lawrence or River Mississippi." ^[151] Gage seemed to believe that the part which went down the St. Lawrence would be transported to England; but that the peltry passing through New Orleans would never enter a British port. ^[152] "Nothing but prospect of a superior profit or force will turn the Channel of Trade contrary to the above maxim." ^[153]

It seems impossible to figure exactly what the loss to imperial interests was under these conditions. ^[154] Furs and skins, however being among the enumerated commodities ^[155] some loss certainly accrued to British shipping and to the government through loss of the duty, as well as to English manufacturers. While practically no peltries reached the Atlantic ports from the Illinois region, enormous quantities were carried to New Orleans. The few who have left any estimate of the amount of peltries exported to New Orleans agree in general that from 500 to 1000 packs were shipped annually from Illinois. According to the usual estimate 500 packs were worth in New Orleans about 3500 pounds sterling. ^[156] At New Orleans, where the western trade finally centered, it was estimated that peltries worth between 75,000 and 100,000 pounds sterling were sent annually to foreign ports. ^[157]

It became apparent to those in a position to understand the situation that those solid advantages which the Government had expected would accrue in return for the expense of maintaining establishments in the West would not be forthcoming, unless some effective though expensive measures be taken. The rivalry of the French who monopolized the larger part of the trade and who naturally followed their old road to New Orleans, and the action of the English traders in turning the channel of their trade down the stream effectually deprived the empire of any benefits. Conditions grew no better as the years went by. In 1767 we find General Gage complaining that "as for the Trade of the Illinois, and in general of the Mississippi, we may dispose of some manufactures there, but whilst Skins and Furrs bear a high price at New Orleans, no Peltry gained by our manufactures, will ever reach Great Britain, and if our Traders do not return with the Produce of their Trade to the Northern Provinces, by way of the

Ohio or Lakes, it will not answer to England to be at much expence about the Mississippi." ^[158] Not only were the officials in America, who were in close touch with western affairs, convinced of the impossibility of obtaining any immediate commercial benefits from the country, but one of the leading members of the ministry, Lord Hillsborough, Secretary for the colonies, took a similar view, in an argument against the planting of western colonies. "This Commerce cannot (I apprehend) be useful to Great Britain otherwise than as it furnishes a material for her Manufactures, but it will on the contrary be prejudicial to her in proportion as other Countries obtain that material from us without its coming here first; & whilst New Orleans is the only Post for Exportation of what goes down the Mississippi, no one will believe that that town will not be the market for Peltry or that those restrictions, which are intended to secure the exportation of that Commodity directly to G. Britain, can have any effect under such circumstances." ^[159] Though there seems to have been a unanimity of opinion respecting the commercial inutility of the Illinois and surrounding country under existing conditions, there were those, however, who believed that with the adoption of certain measures the western country could be made of intrinsic commercial value. Whether any adequate steps could have been taken to turn the channel of trade eastward and to exclude foreign traders is uncertain.

The original intention of the British government had been to use Fort Chartres to guard the rivers in order to prevent contraband trading; ^[160] but its inefficiency was soon apparent. ^[161] Although well constructed, its location was not strategic; it commanded nothing but an island in the river. ^[162] An indication to the Indians of British dominion ^[163] and a place of deposit for English merchants was about the sum total of its efficiency. ^[164] In order to make the Illinois country effective as a bulwark against foreign aggression and to keep the trade in English hands, thus insuring material advantages to the empire, it seemed imperative to many who were familiar with the situation to adopt measures looking toward the closure of those natural entrances into the country, the mouths of the Illinois and Ohio rivers. ^[165] Almost all the correspondence of the time relating to Illinois, contains references to the practicability of erecting forts at the junctions of the Illinois and Ohio rivers with the Mississippi; in most cases this was insisted upon as the only measure to be adopted to make the country of

value. ^[166] All were further in agreement that until such plan was carried out no benefits would arise from the possession of that territory. Suggestions were also offered relative to the erection of a fort on the Mississippi River above its junction with the Illinois for the protection of that section of the country. ^[167] Perhaps the most novel suggestion emanated from General Gage, who declared that in order to gain all the advantages expected it would be necessary to amalgamate all the little French villages lying between the Illinois and Ohio rivers into one settlement, which would also be the centre of the military establishment; detachments could then be sent out to guard the rivers and prevent British merchants from descending the stream to New Orleans and also watch for foreign interlopers. ^[168]

But these suggestions one and all failed to receive recognition from the government. One of the main reasons for this non-action may well be summed up in a statement of Hillsborough's, who appears by 1770 to have become somewhat pessimistic regarding the prospect of any immediate advantages from the western trade. He declared in that year that "Forts & Military Establishments at the Mouths of the Ohio & Illinois Rivers, admitting that they would be effectual to the attainment of the objects in view, would yet, I fear, be attended with an expence to this Kingdom greatly disproportionate to the advantage proposed to be gained." ^[169]

The failure of the government to manage successfully the western trade previous to 1770 was not the only reason the ministry hesitated to do any thing further. Any measure would have meant the expenditure of large sums of money with no absolute certainty of an adequate return. The problem of the western trade confronted the ministry at a most unfortunate time. Questions of graver import were arising and demanding immediate attention. Instead of seeking new schemes upon which to lavish money, every opportunity was seized upon to curtail expenses. The government failed to put into full operation the plan of 1764 because of the added financial burden it would entail and in 1768 the management of the Indian Trade was transferred from the crown to the colonies to further reduce the budget. The western question had become subordinated to that of the empire. Furs were important to the manufacturing monopoly of Great Britain, but at this time of rising discontent and dissatisfaction in the

colonies any new projects entailing further expense were out of the question.

CHAPTER V.

COLONIZING SCHEMES IN THE ILLINOIS.

Although prior to the Seven Years War France was in nominal possession of the Ohio and Mississippi valleys, the English colonies on the sea-board viewed that territory in a different light. The old sea to sea charters still possessed a potential value in the eyes of British colonists and little or no respect was accorded the claims of France. Gradually toward the middle of the century the more enterprising and farsighted of the colonists, who appreciated the future value of the region, began to lay plans for its systematic exploitation. As early as 1748, shortly after the peace of Aix-la-Chapelle, the Ohio Company, composed of London merchants and Virginia land speculators obtained from the crown a grant of land south of the Ohio river. This was the precursor of several companies formed for similar purposes. In 1754 the question of western expansion had become of sufficient importance to engage the attention of the Albany Congress, the plans for the creation of western colonies were discussed by that body. ^[170] The following year Samuel Hazard of Philadelphia outlined a proposition looking toward the formation of a western colony, ^[171]—probably the first which comprehended the Illinois country.

The treaty of cession of 1763 gave a new impulse to the colonizing spirit which had lain dormant during the early years of the war. The English now believed that they were free to occupy at will the unsettled lands as far westward as the Mississippi River. Early in the summer of 1763, before the British ministry had had time to consider and determine its policy toward the new acquisitions, there was formed an organization known as the Mississippi Land Company, ^[172] for the purpose of planting a colony in the Illinois and Wabash regions. In this scheme some of the most prominent inhabitants of Virginia and Maryland were interested, ^[173]—indeed membership in the organization was drawn almost entirely from those two colonies and from London. The Company was eventually to be composed of fifty members who were to contribute equally towards the maintenance of an agent in England, to whom was intrusted the duty of soliciting from

the crown a grant of two million five hundred thousand acres of land ^[174] on the Mississippi and its tributaries, the Wabash and Ohio rivers. The proposed grant was to be "laid off within the following bounds beginning upon the East side of the Rivers Mississippi one hundred and twenty miles above or to the northward of the confluence of the River Ohio therewith. Thence by a line to strike the river Wabash or St. Ireon eighty miles above the union of Ohio and Wabash, and abutting on the main branch of the River Cherokee or Tennessee one hundred fifty mile above the junction of Cherokee River with Ohio and proceeding thence Westerly in a line to strike the River Mississippi seventy miles below the union of Ohio with that River; thence upon the said River to the beginning." ^[175] The subscribers were to be free to retain their lands twelve years or more at the pleasure of the crown without the payment of taxes on quit rents. Within the same period also the company was to be obliged to settle two hundred families in the colony, unless prevented by Indians or a foreign enemy. ^[176] In order to insure against any such interruption, it was hinted that the government might establish and garrison two forts,—one at the confluence of the Cherokee ^[177] and Ohio rivers, and the other at the mouth of the Ohio. ^[178]

In their petition the memorialists enumerate the advantages they expect the empire to receive in case the land be granted, special emphasis being laid on two points of view,—commerce and defence. "The Increase of the people, the extension of trade and the enlargement of the revenue are with certainty to be expected, where the fertility of the soil, and mildness of the climate invite emigrants (provided they can obtain Lands on easy terms) to settle and cultivate commodities most wanted by Great Britain and which will bear the charges of a tedious navigation, by the high prices usually given for them,—such as Hemp, Flax, Silk, Wine, Potash, Cochineal, Indigo, Iron, &c., by which means the Mother Country will be supplied with many necessary materials, that are now purchased by foreigners at a very great expense." ^[179]

From the point of view of both trade and defense, the company proposed "that by conducting a trade useful to the Indians on the borders of the Mississippi they will effectually prevent the success of that cruel policy, which has ever directed the French in time of peace, to prevail with the

Indians their neighbors to lay waste the frontiers of your Majesty's Colonies thereby to prevent their increase." [180]

Lastly, the establishment of a buffer colony would effectually prevent the probable encroachments of the French from the West side of the Mississippi, and cut off their political and commercial connection with the Indians. They would "thereby be prevented from instigating them to War, and the harrassing the frontier Counties as they have constantly done of all the Colonies." [181]

The plan received its first official check in the year of its inception, when in October, 1763, the British ministry announced its western policy in a proclamation according to which all the territory lying north of the Floridas and west of the Alleghanies was reserved for the use of the Indians. [182] Thereafter the colonial governors were forbidden to issue patents for land within this reservation without the consent of the crown. [183] However, the enunciation of this policy did not deter this and similar companies from pressing their claims upon the Board of Trade. The more far-sighted of the Americans had probably correctly interpreted the proclamation as temporary in character and as promulgated to allay the alarm of the savages. [184] The Mississippi company therefore continued to solicit the grant until 1769, when it was decided that on account of the temper of the ministry towards America, it would be advisable to allow the matter to rest for a time in the hope that a change in the government would bring a corresponding change in policy. [185] But at no time does it appear that the promoters of the colony received the slightest encouragement from those in authority. [186]

About the time of the Mississippi company in 1763, General Charles Lee [187] outlined a scheme for the establishment of two colonies, one on the Ohio River below its junction with the Wabash, and the other on the Illinois River. [188] It was his plan to organize a company and petition the crown for the necessary grants of land. [189] A portion of the settlers were to be procured in new England, and the remainder from among Protestants of Germany and Switzerland. [190] In narrating the probable advantages which he thinks would be derived from such settlements, Lee takes practically the same point of view as the Mississippi company, adding the suggestion that a

new channel of commerce would be opened up through the Mississippi River and the Gulf of Mexico. ^[191] This proposal suffered the same fate as its contemporary in being objected by the ministry, whose policy of allowing no settlements in the country beyond the mountains had been too recently adopted. ^[192]

Thus far there seems to be no indication that the above mentioned colonizing schemes received encouragement from any one in close touch with the government. Apparently the authors of those projects did not have the ear of those members of the ministry, whose general attitude gave some ground for the belief that in the end plans for western settlements would be adopted. The most prominent among these was Lord Shelbourne, whose personal attitude favored carving the West into colonies. Possibly his friendship with Dr. Franklin influenced him in part to throw the weight of his prestige in favor of a new plan for a colony, promoted this time by prominent merchants and land speculators of New York, Pennsylvania, and New Jersey. It was in 1766 that the next definite scheme appeared, although it is probable that there were many others, for during those years half of England was said to have been "New Land mad as every body there had their eyes fixt on this Country." ^[193] Pamphlet literature was printed and disseminated throughout England and America from 1763 on advocating the feasibility of settling the new lands, ^[194] which doubtless had considerable influence. It is hardly probable that the few definite propositions of which we have recorded were the only schemes projected during this period. ^[195]

The plan of 1764 had its origin we may safely say as 1764. In January of that year the Board of Trade received a communication from one of the promoters of the plan, George Croghan, who was then in England, asking their Lordships "whether it would not be good policy at this time while we certainly have it in our power to secure all the advantages we have got there by making a purchase of the Indians inhabiting the Country along the Mississippi from the mouth of the Ohio up to the sources of the River Illinois, and there plant a respectable colony, in order to secure our frontiers, and prevent the French from any attempt to rival us in the Fur trade with the Natives, by drawing the Ohio and Lake Indians over the

Mississippi which they have already attempted by the last accounts we have from Detroit." [\[196\]](#)

The tentative proposition thus suggested by Croghan to the Board was in essence the same plan that he and his associates developed two years later. In its general outline there is no intimation that Croghan intended at this time to include the cultivated lands of the French inhabitants of Illinois who might leave that country. [\[197\]](#) But Sir William Johnson, his superior in the Indian department in America and his constant associate in colonizing enterprizes, writing to the two years subsequently, gave as his opinion that "some of the present Inhabitants may possibly incline to go home, and our Traders will I dare say chuse to purchase their rights, this may be the foundation for a Valuable Colony in that Country, ———, this may be effected in time, & large cessions obtained of the Natives." [\[198\]](#) This idea of basing the colony in part upon the lands vacated by the French was a few weeks later taken up and emphasized by General Gage. He declared that there was only one way to obviate the difficulties in Illinois on account of lack of provisions for the army as well as to form at the least expense a barrier against probable incursions of foreigners from Louisiana. That method must be to "grant the lands deserted by the French, which I presume forfeited, as well as other Lands unsettled, using necessary Precautions to avoid Disputes with the Indians, to the British Settlers." [\[199\]](#) While Croghan, Johnson, and Gage were thus advocating the purchase of the French claims and some additional Indian lands with the view of forming a buffer colony, Governor William Franklin of New Jersey and some Philadelphia merchants, all friends of the Indian agent Croghan, were promoting the same scheme, and on March 29th, 1766, Governor Franklin drew up [\[200\]](#) a formal sketch. [\[201\]](#) "A few of us, from his (Croghan's) encouragement, have formed a Company, to purchase of the French, settled at the Illinois, such lands as they have a good title to, and are inclined to dispose of. But as I thought it would be of little avail to buy lands in the Country, unless a Company were established there, I have drawn some proposals for that purpose, which are much approved of by Col. Croghan and the other gentlemen concerned in Philadelphia, and are sent by them to Sir William Johnson for his sentiments, and when we receive them, the whole will be forwarded to you. It is proposed that the Company shall consist of twelve, now in America, and if you like the proposals, you will be

at liberty to add Yourself, & such other gentlemen of character & fortune in England, as you may think will be most likely to promote the undertaking." [202]

Franklin's letter to his father explains very clearly the steps in the development of the plan up to that time. It is necessary, however, to examine other sources in order to ascertain details concerning the proposition. The Articles of Agreement as outlined by Governor Franklin contains the tentative proposal that application be made to the crown for a grant in the Illinois country of 1,200,000 acres or "more if to be procured." [203] Provision was also made in the original draft for ten equal shareholders, the stipulation to be subject to change in case others desired to enter the company. [204] The original draft was sent to Sir William Johnson who was requested to consider the proposals and make any alterations he saw fit. [205] The articles were then to be returned to Governor Franklin, with Johnson's recommendations to the ministry. [206] Through Franklin the papers were to be forwarded to Dr. Franklin in London, to whom was intrusted the task of negotiating with the ministry. [207]

In his recommendations Johnson urged upon the ministry the adoption of the proposals and in addition offered a number of suggestions among which the following are of interest. [208] 1. The crown should purchase from the Indians all their right to the territory in the Illinois country. 2. A civil government should be established. 3. The proposed land grants should be laid out in townships according to the practice in New England. 4. Provincial officers and soldiers who served in the French war should receive grants. 5. The mines and minerals should belong to the owners of the land in which they may be found, except royal mines, from which the crown might receive a fifth. 6. In every township 500 acres should be reserved for the maintenance of a clergyman of the Established Church of England. 7. Finally the lands of the colony were suggested as follows:—From the mouth of the Ouisconsin (or Wisconsin) River down the Mississippi agreeable to Treaty, to the Forks, or Mouth of the Ohio. Then up the same River Ohio to the River Wabash, thence up the same River Wabash to the Portage at the Head thereof. Then by the said Portage to the River Miamis and down the said River Miamis to Lake Erie. Thence along the several Courses of the said Lake to Riviere al Ours (or Bear River) and

up the said River to the Head thereof, and from thence in a straight Line, or by the Portage of St. Josephs River & down the same River to Lake Michigan then along the several Courses of the said Lake on the South and West Side thereof to the point of Bay Puans, and along the several Courses on the East Side of the said Bay to the Mouth of Foxes River, thence up to the Head thereof and from thence by a Portage to the Head of Ouisconsin River, and down the same to the Place of Beginning.

Benjamin Franklin exerted every effort to advance the project in England, but with little success. Lord Shelburne, who was at this time Secretary of State for the southern department, was also ready and anxious to see the new colony established, and he was able to influence the ministry to take a favorable view. Others in authority, however, and particularly members of the Board of Trade, were opposed to the proposition. ^[209] In 1768, the Board, under the presidency of Hillsborough, reported adversely and the question of the Illinois colony was dropped. Attention of land speculators was now called to the new Vandalia colony in the upper Ohio region.

CHAPTER VI.

EVENTS IN THE ILLINOIS COUNTRY, 1765-1768.

In the foregoing chapters an attempt has been made to point out certain general aspects relating to the West and to the Illinois country, with special reference to the governmental status of the old French settlements after the conquest, the extension of the English law to the conquered territory, some of the problems of the Indian and trade relations, and finally attention has been called to some of the projects for the colonization of the Illinois country after 1763. What were the actual events taking place in the Illinois after the occupation has always been problematical. Previous writers have almost without exception dismissed with a sentence the first two or three years of the period. Indeed the whole thirteen years of British administration have generally been crowded into two or three paragraphs. Although the available historical material relating to the material to the period in general has recently been considerably augmented, there yet remain gaps which must be bridged before a complete history of the colony under the British can be written.

Among the first duties of the British commandant after taking formal possession of Fort de Chartres in October, 1765, was to announce to the inhabitants the contents of Gage's proclamation. It is only from this document that we know anything of the status of the individual inhabitants of Illinois. One of its leading features was a clause granting to the French the right of the free exercise of the Roman Catholic religion "in the same manner as in Canada," ^[210] which was the fulfillment on the part of the British government of the pledge stipulated in the IVth article of the treaty of Paris, containing the following clause: "Brittanick Majesty agrees to grant the liberty of the Catholic religion to the inhabitants of Canada; he will consequently give the most precise and effectual orders, that his new Roman Catholic subjects may profess the worship of their religion, according to the rites of the Roman Catholic Church, as far as the laws of Great Britain permit." ^[211] This provision appertained to the whole western territory as well as to Canada proper. Prior to the treaty of cession the

Illinois and Wabash settlements were subject to the jurisdiction of Louisiana, while approximately the country north of the Fortieth parallel had been within the limits of Canada. But in the treaty all the territory lying between the Alleghanies and the Mississippi river was described as a dependency of Canada. The government was thus committed to religious toleration within the whole extent of the ceded territory. This meant, however, that only the religious privileges of the church had been secured, for the clause in the treaty, "as far as the laws of Great Britain permit," meant that papal authority would not be tolerated within the British empire.

Other clauses provided that all the inhabitants of Illinois who had been subjects of the king of France, might if they so desired, sell their estates and retire with their effects to Louisiana. No restraint would be placed on their emigration, except for debt or on account of criminal processes. ^[212] This was also a fulfillment of the pledges made in the treaty of Paris. ^[213] All the inhabitants who desired to retain their estates and become subjects of Great Britain were guaranteed security for their persons and effects and liberty of trade. ^[214] Finally they were commanded to take the oath of allegiance and fidelity to the crown in case they remained on British soil. ^[215]

When Captain Sterling proceeded to Kaskaskia to post the proclamation and to administer the oaths of allegiance for which he was empowered by the commanding general, he was confronted by an unexpected movement on the part of the inhabitants. A petition was presented signed by the representative French of the village, asking for a respite of nine months in order that they might settle their affairs and decide whether they wished to remain under the British government or withdraw from the country. ^[216] At first Sterling refused to grant the request. ^[217] According to the terms of the Paris treaty the inhabitants of the ceded territory had been given eighteen months in which to withdraw, the time to be computed from the date of the exchange of ratifications. ^[218] The limit had long since expired, and it was therefore beyond the power of Sterling or his superior General Gage to grant legally an extension of time. ^[219] When, however, the commandant perceived that unless some concessions were granted, the village would be immediately depopulated, he extended the time to the first of March, 1766, with the provisions that a temporary oath of allegiance be given, ^[220] and that all desiring to leave the country should

give in their names in advance. ^[221] To this tentative proposition the French in Kaskaskia agreed on condition that Sterling forward to the commanding general a petition, in which they ask for the longer time. ^[222] An officer was dispatched to the villages of Prairie du Rocher, St. Phillippe, and Cahokia where similar arrangements were made. ^[223]

The machinery of civil government in operation under the French regime had become badly deranged during the French and Indian war and when the representatives of the English government entered the country affairs were in a chaotic state. The commandant of the English troops had of course no authority to govern the inhabitants. But he found himself face to face with conditions which made immediate action imperative. Practically the only civil officers Sterling found on the English side of the river were Joseph La Febevre, who acted as Judge, Attorney General and Guardian of the Royal Warehouse, and Joseph Labuxiere, was Clerk and Notary Public. ^[224] But those men retired with St. Ange and the French soldiers to St. Louis shortly after the arrival of the English. ^[225] This brought the whole governmental machinery to a standstill, and the English commander was forced to act. He determined to appoint a judge and after consulting the principal inhabitants of the villages, selected M. La Grange, who was intrusted "to decide all disputes according to the Laws and Customs of the Country," with liberty to appeal to the commandant in case the litigants were dissatisfied with his decision. ^[226] The captains of militia seem to have retained their positions under the British, their duties being practically the same as in the French regime. Each village or parish had its captain who saw to the enforcement of decrees and other civil matters as well as looking after the local militia. ^[227] The office of royal commissary continued and James Rumsey, a former officer in the English army was appointed to this position. ^[228] But who was to continue the duties of the old French commandants with both his civil and military functions? Obviously the most logical person was the commanding officer of the English troops stationed at the fort, with the difference that the former held a special commission for the performance of these duties, while the latter had no such authorisation. A further and more fundamental difference lay in the fact that formerly the French had the right to appeal to the Superior Council

at New Orleans, while apparently no such corresponding safeguard was given them by the new arrangement.

Sterling did not long retain command of the post ^[229] for in December he was superseded by Major Robert Farmer, ^[230] his superior in rank, who arrived from Mobile with a detachment of the 34th regiment, after an eight months voyage. Their arrival was exceedingly welcome to Sterling and his men since they were becoming greatly embarrassed for lack of provisions, ammunition, and presents for the Indians. ^[231] When they left Fort Pitt in August, it had not been thought necessary to transport more than sixty pounds of ammunition inasmuch as Fort de Chartres was expected to yield a sufficient supply, and both Gage and Sterling believed that Croghan, with his cargo of supplies, would be awaiting the arrival of the troops at the Illinois. ^[232] Neither expectation was realized. Croghan was back in the colonies prior to Sterling's arrival at the post, and when the fort was transferred, it yielded neither ammunition nor other supplies in sufficient quantity to meet the needs of the troops. ^[233]

An assembly of three or four thousand Indians had been accustomed to gather at the fort each spring to receive annual gifts from the French. But the English had made no provisions for such a contingency, which, coupled with the weakness of the garrison and the recent hostility of the Indians, would probably lead to serious complications. A possible defection of the Indians, therefore, necessitated a large supply of military stores ^[234] which it was possible to obtain from the French merchants in the villages. The latter agreed to furnish the soldiers with ammunition, on the condition that other provisions would also be purchased, ^[235] for which the English alleged they charged an exorbitant price. ^[236] Sterling was compelled to acquiesce, for the merchants had sent their goods across the river where he could not get at them. ^[237]

The large supply of provisions which the colony had produced in former years seems to have decreased, at any rate it fell far short of the expectations of the English officers. One officer writes at this time that "they have indeed but little here, and are doing us a vast favor when they let us have a Gallon of French brandy at twenty Shillings Sterling, and as the price is not as yet regulated the Eatables is in the same proportion." ^[238]

The wealth of colony had been considerably impaired since the occupation on account of the exodus of a large number of French who disobeyed the order of Sterling that all who desired to withdraw should give in their names in advance. Taking their cattle, grain and effects across the ferries at Cahokia and Kaskaskia, they found homes at St. Louis and St. Genevieve on the Spanish side. ^[239] Probably a large part of the emigrants left in the hope that in Louisiana they might still enjoy their ancient laws and privileges, ^[240] and others from fear lest the Indians, who were now assuming a threatening attitude, might destroy their crops and homes. ^[241]

The acute situation of the garrison brought on by the dearth of supplies continued through the winter and spring of 1765 and 1766. ^[242] Farmer estimated that all the provisions available amounted to no more than fifty thousand pounds of flour and 1250 pounds of corn meal, ^[243] upon which the garrison could barely subsist till the following July; and a portion of this stock would have to be given to the Indians, since representatives of the Indian department had not yet appeared. These circumstances obliged Major Farmer to send Sterling and his troops to New York by way of the Mississippi river and New Orleans instead of up the Ohio river in accordance with Gage's orders. ^[244] In response to a series of urgent requests for assistance, Gage employed a force of Indians to transport a cargo to the Illinois, ^[245] which reached Fort Chartres during the early summer of 1766, by which time also representatives of the English merchants at Philadelphia had arrived with large stores of supplies. ^[246] Henceforth we hear nothing further of a shortage of provisions in the Illinois, for not only did the English merchants import large supplies from the East, but cargoes were brought up the Mississippi from New Orleans by the French; ^[247] and for a time the English government itself transported the necessary provisions from Fort Pitt. ^[248]

Late in the summer of 1766 Farmer was relieved by Lieutenant Colonel Reid, who arrived during the summer from Mobile with another detachment of the thirty-fourth regiment. ^[249] Reid soon became obnoxious to the people on account of his tyrannical acts, many of which have been recorded in Colonel George Morgan's letter book. His administration of affairs, however, continued over a period of two years. In 1768 he was

relieved by Colonel John Wilkins who ruled the French for the next three years.



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FOOTNOTES.

- [1] Perkins, *France under Louis XV*, II, pp. 1-83.
- [2] Parkman, *Montcalm and Wolfe*, I, pp. 1-39.
- [3] Parkman, *Montcalm and Wolfe*, I, pp. 39-67.
- [4] Hunt, *Pol. Hist. of England*, X, pp. 23-40.
- [5] Text of treaty in Chalmers, *Collections of Treaties*, I, 467-483. Canadian Archives, 1907 Report, 73-84. Hildreth, *Hist. of U. S.*, 501-503.
- [6] Parkman, *La Salle and the Discovery of the Great West*, 312.
- [7] *Ibid.*, 312.
- [8] Cahokia was founded in 1699 by the priests of the Seminary of Foreign Missions.
- [9] Winsor, *Narr. and Crit. Hist.* V, 43.
- [10] *Ibid.*, 49.
- [11] *Ibid.*, 53.
- [12] Parkman, *Conspiracy of Pontiac*, II, 272-273.
- [13] For the Indian rebellion the best secondary accounts are: Parkman, *Conspiracy of Pontiac*, 2 vols., passim. Kingsford, *Hist. of Can.*, 1-112. Poole, The West, in Winsor, *Narr. & Crit. Hist. of Amer.*, VI., 684-700. Winsor, *Miss. Basin*, 432-446. Bancroft, *Hist. of U. S.*, IV., 110-133. (Ed. of 1852, containing references.)
- [14] Parkman, *Conspiracy of Pontiac*, I, 182.
- [15] Johnson to Lords of Trade, *N. Y. Col. Docs.*, VII, pp 929, 955, 960, 964, 987.
- [16] Johnson to Amherst, July 11th, 1763, *N. Y. Col. Docs.*, VII, 532.
- [17] Johnson to Amherst, July 11th, 1763. *N. Y. Col. Docs.*, VII, 532.
- [18] Parkman, *Conspiracy of Pontiac*, I, 181, quoting from a letter of Sir William Johnson to Gov. Colden, Dec. 24, 1763. Winsor, *Miss. Basin*, 433.
- [19] Johnson to Lords of Trade, July 1, 1763, *N. Y. Col. Docs.*, VII, 525. Johnson to Amherst, July 8, 1763, *Ibid.*, 531. Johnson to Lords of Trade, Dec. 26, 1764, *Ibid.*, 688-689. Gage to Bouquet, June 5, 1764, *Can. Arch.*, Series A, Vol. 8, p 409. Gage to Bouquet, Oct. 21, 1764, *Ibid.*, p 481. Johnson to Gov. Colden, Jan. 22, 1765, Johnson MSS, X, No. 99.

[20] Can. Arch. Report, 1905, I, 470. Neyon to Kerlerc, Dec. 1, 1763, Bancroft Coll., Lenox Lib. Extract from letters of M. D'Abaddie, Jan., 1764, *Can. Arch. Report*, I, 471. D'Abaddie to the French minister, 1764, *Ibid.*, 472.

[21] This is the view taken by Parkman, *Conspiracy of Pontiac*, II, 279, and by Bancroft, *Hist. of U. S.*, V, 133, 136. But Kingsford, in his *Hist. of Can.*, V, 25, takes an opposite view. He says that the "high character claimed for Pontiac cannot be established." "He can be looked upon in higher light, than the instrument of the French officials and traders." On page 6 he declares that "there is no evidence to establish him as the central figure organizing this hostile feeling."

[22] Gage to Halifax, July 15, 1764, Bancroft Coll., Eng. & Am., 1764-1765. Winsor, *Miss. Basin*, 444, 456. Winsor, *Narr. & Crit. Hist. of Am.* VI, 702.

[23] Beer, *British Col. Policy*, 263. Kingsford, *Hist. of Can.*, V, 68.

[24] Winsor, *Miss. Basin*, 633. Ogg, *Opening of Miss.*, 301.

[25] Bouquet to Amherst, Dec. 1, 1763, *Can. Arch.*, Ser. A, Vol. IV, p 413. Gage to Bouquet, Dec. 22, 1763, *Ibid.*, Vol. 8, p. 341.

[26] Lt. Col. Robertson to Gage, March 8, 1764, *Ban. Coll.*, Eng. & Am., 1764-1765, De Villers, *Les dernières Années de la Louisiana*, 180.

[27] Robertson to Gage, Mar. 8, 1764.

[28] *Ibid.*

[29] Loftus to Gage, April 9, 1764, *Ban. Coll.*, Eng. & Am., 1764-1765. Gage to Halifax, May 21, 1764, *Ibid.* Parkman, *Conspiracy of Pontiac*, 88, 283, 285. Kingsford, *Hist. of Can.*, V, 69-74. Winsor, *Narr. and Crit. Hist. of Am.*, VI, 701, 702, Gayarre, *Louisiana*, II, 102-103.

[30] Loftus to Gage, April 9, 1764, *Ban. Coll.*, Eng. & Am., 1764-1765. De Villers, *Les dernières Années de la Louisiana*, 182-184.

[31] *Ibid.*

[32] Robertson to Gage, Mar. 8, 1764, *Ibid.* "Account of what happened when the English attempted to take possession of Illinois by way of the Mississippi," from Paris documents, *Can. Arch. Report*, 1905, I, 407-411. Parkman, *Conspiracy of Pontiac*, II, 284, note 1, containing a letter from Gage thanking D' Abadie for his efforts in behalf of the English.

[33] Extract from the correspondence of D' Abadie with the French commandants, Jan., 1764. *Can. Arch. Report*, 1905, I, 471. Parkman, who made a careful study of the correspondence in the French archives, came to the conclusion that the French officials may be exonerated. Winsor holds a similar view in his *Mississippi Basin*, 452. See also Cayarre, *Louisiana*, II, 101. Kingford, in his *Hist. of Can.*, V, 69-74, places no dependence in D' Abadie's statements. On the other hand he bases most of his argument upon a letter of Loftus which he quotes at length, but gives no hint as to its location, date, &c. It is evidently not the letter written to Gage, which is quoted above.

[34] Loftus to Gage, April 9th, 1764, *Ban. Coll.*, Eng. & Am., 1764-1765.

[35] Gage to Halifax, April 14th, 1764, *N. Y. Col. Docs.*, VII, 619.

[36] This has reference to those tribes along the Mississippi River who were in direct communication with Pontiac and the French. The great Cherokee and Chicksaw nations were favorable to the English.

[37] Gage to Bouquet, May 21, 1764, *Can. Arch.*, Ser. A, Vol. 8, p 393. Gage to Halifax, May 2d, 1764, *Ban. Coll.*, Eng. & Am., 1764-1765. Gage to Haldimand, May 27, 1764, *Brit. Mus.*, Add. MSS, 21, 662. Gage to Halifax, July 13, 1764, *Ban. Coll.*, Eng. & Am., 1764-1765.

[38] Parkman, *Conspiracy of Pontiac*, II, Winsor, *Miss. Basin*, 454.

[39] St. Ange to D' Abadie, Aug. 16, 1764, *Can. Arch. Report*, 1905, I, 471. Parkman, *Conspiracy of Pontiac*, II, 279-280.

[40] The original journal kept by Morris during his journey is reprinted in Thwaites, *Early Western Travels*, I, 198-208. There is also a biographical sketch in the same volume. Correspondence relating to the Morris mission is to be found in the Bouquet Collection, *Can. Arch.*, Ser. A, Vol. 8, pp 475-491. For a good account of the incident, see Parkman, *Conspiracy of Pontiac*, II, 198-208, and Kingsford, *Hist. of Canada*, V, 8.

[41] This incident illustrates the practical failure of Bradstreet's campaign against the Indians in the Lake region. While he retook the posts, his terms were so easy that the Indians were not in the least awed by the proximity of his army.

[42] Thwaites, *Early Western Travels*, I, 305.

[43] Ross to Farmer, Feb. 21, 1765, *Ban. Coll.*, Eng. & Am., 1764-1765. Gage to Halifax, Aug. 10, 1765, *Ibid.*

[44] Ross to Farmer, May 25, 1765, *Ban. Coll.*, Eng. & Am., 1764-1765. H. Gordon to Johnson, Aug. 10, 1765, Johnson MSS, Vol. XI, No. 73.

[45] Ross to Farmer, May 25, 1765, *Ban. Coll.*, Eng. & Am., 1764-1765.

[46] *Ibid.*

[47] *Ibid.*

[48] *Ibid.* Copy of Council held at the Illinois in April, 1765, Home Office Papers, Dom., Geo. III, Vol. 3, No. 4(1). Public Rec. Office. Copy of minutes of Council, April 4, 1765, in *Can. Arch. Report*, 1905, I, 473. See also De Villiers, *Les dernières Années de la Louisiana*, p. 220.

[49] Ross to Farmer, May 25, 1765, *Ban. Coll.*, Eng. & Am., 1764-1765.

[50] Johnson to Gage, June 9, 1764, Johnson MSS, Vol. XIX, No. 111. Johnson to Lords of Trade, Dec 26, 1764, *N. Y. Col. Docs.*, VII, 689. Bouquet to Gage, Jan. 5, 1765, *Can. Arch.*, Ser. A, Vol. VII, p 111. Parkman, *Conspiracy of Pontiac*, II, 291-292. Winsor, *Narr. & Crit. Hist. of Am.*, VI, 702. Croghan is one of the most interesting figures of the period. He had entire charge, as Sir William Johnson's deputy, of the Indians in the Ohio river region and was thoroughly conversant with

western affairs. For biographical sketch see Thwaites, *Early Western Travels*, I, 47-52, or *N. Y. Col. Docs.*, VII.

[51] Gage to Bouquet, Dec. 24, 1764, *Can. Arch.*, Ser. A, Vol. VIII, p 499. *Ibid.*, Dec. 30, 1764, *Ibid.* This distinction is not generally made. Writers have usually inferred that Fraser simply accompanied Croghan in an unofficial capacity. See, however, Winsor, *Miss. Basin*, 456. Ogg, in *Opening of the Mississippi*, 310, places Fraser's journey a year previous to Croghan's, which is obviously an error.

[52] Gage to Johnson, Feb. 2, 1765, Parkman Coll., Pontiac:—Miscell., 1765-1778.

[53] Jos. Calloway to B. Franklin, Jan. 23, 1765, Sparks MSS, XVI, 54, 55.

[54] Parkman, *Conspiracy of Pontiac*, II, 292.

[55] The frontiersmen could not understand the significance of giving valuable presents to the Indians.

[56] Johnson to Lords of Trade, May 24, 1765, *N. Y. Col. Docs.*, VII, 716. Parkman, *Conspiracy of Pontiac*, II, 292-297.

[57] Johnson to Lords of Trade, May 24, 1765, *N. Y. Col. Docs.*, VII, 716.

[58] Parkman, *Conspiracy of Pontiac*, II, 297.

[59] Johnson to Lords of Trade, Jan. 16, 1765, *N. Y. Col. Docs.*, VII, 694.

[60] Croghan's Journal of his transactions, from Feb. 28 to May 12, 1765, MS in Parkman Collection. Johnson to Burton, June 6, 1765, Johnson MSS, X, No. 263.

[61] Croghan's Journal of his transactions, from Feb. 28 to May 12, 1765, MS in Parkman Collection.

[62] Maisonville, a Frenchman, and one Andrew, an interpreter were among the whites. Shawnee and Seneca Indians also accompanied the party. Note the error in Kingsford, *Hist. of Can.*, V, 116, wherein Sinnot is said to have accompanied Fraser. Sinnot had been sent about the same time from the south by Indian agent Stuart. On arriving at the Illinois his goods were plundered and he was finally forced to flee to New Orleans. Johnson to Lords of Trade, Sept. 28, 1765, *N. Y. Col. Docs.*, VII, 765. *Ibid.*, Nov. 16, 1765, *Ibid.*, p 776. Apparently Sinnott must have arrived at Illinois after Fraser's departure for New Orleans, since Croghan implies that the former was still at Fort Chartres while he was a captive at Vincennes. See Croghan's Journal as printed in the *N. Y. Col. Docs.*, VII, 780.

[63] Parkman, *Conspiracy of Pontiac*, II, 300.

[64] Fraser to Gage, May 15, 1765, Ban. Coll., Eng. & Am., 1764-1765. Fraser to Crawford, May 20, 1765, *Mich. Pion. Colls.*, X, 216-218. Fraser to Gage, May 26, 1765, Ban. Coll., Eng. & Am., 1764-1765. Gage to Johnson, Aug. 12, 1765, Parkman Coll., Pontiac, Miscell., 1765-1778.

[65] Fraser to Gage, June 16, 1765, Ban. Coll., Eng. & Am., 1764-1765. Parkman, *Conspiracy of Pontiac*, II, 302. De Villiers, *Les dernières Années de la Louisiana Française*, 220-221. Reports were current in the East that Fraser and his

party had been killed by the Indians. See Gage to Johnson, June 17, 1765, Myers Coll., N. Y. Pub. Lib. Johnson to Lords of Trade, July, 1765, Johnson MSS, Vol. XI, No. 43. One of the party, Maisenville, remained in the Illinois. Thwaites, *Early Western Travels*, I, 146.

[66] Fraser to Campbell, May 20, 1765, *Mich. Pioneer Colls.*, X, 216-218.

[67] St Ange to D'Abadie, *Can. Arch. Report*, 1905, I, 471.

[68] A party of traders under the leadership of one Crawford preceded Croghan. They were, however, cut off before reaching the Illinois. Shuchburgh to Johnson, July 25, 1765, Johnson MSS, Vol. XI, No. 56.

[69] Thwaites, *Early Western Travels*, I, 131. Parkman, *Conspiracy of Pontiac*, II, 304. The chief sources of information for this journey are Croghan's Journals, most of which have been printed in Thwaites, *Early Western Travels*, I, 126-166. For secondary accounts see, Parkman, *Conspiracy of Pontiac*, II, 304-315. Kingsfords, *Hist. of Can.*, V, 116-120. Winsor, *Narr. & Crit. Hist. of Am.*, VI, 704. *Ibid.*, *Miss. Basin*, 456-457.

[70] Thwaites, *Early Western Travels*, I, 131. Gage to Conway, Sept. 23, 1765, Ban. Coll., Eng. & Am., 1764-1765. Parkman, *Conspiracy of Pontiac*, II, 304.

[71] Thwaites, *Early Western Travels*, I, 139.

[72] Croghan to Murray, July 12, 1765, Ban. Coll., Eng. & Am., 1764-1765. Gage to Conway, Sept. 23, 1765, *Ibid.*

[73] Croghan to Murray, July 12, 1765, *Ibid.* Thwaites, *Early Western Travels*, I, 146.

[74] Croghan to Murray, July 12, 1765, Ban. Coll., Eng. & Am., 1764-1765. Thwaites, *Early Western Travels*, I, 144-145. Johnson to Lords of Trade, July, 1765, Johnson MSS, Vol. XI, No. 43.

[75] Thwaites, *Early Western Travels*, I, 145-146.

[76] *Ibid.* Jas. Macdonald to Johnson, July 24, 1765, Johnson MSS, Vol. XI, No. 50. Thos. Hutchins to Johnson, Aug. 13, 1765, Johnson MSS, Vol. XI, No. 97. Gage to Conway, Sept. 23, 1765, Ban. Coll., Eng. & Am., 1764-1765.

[77] Thwaites, *Early Western Travels*, I, 154-166. Johnson to Wallace, Sept. 18, 1765, Johnson MSS, Vol. XI, No. 56. Gage to Conway, Sept. 25, 1765, Ban. Coll., Eng. & Am., 1764-1765. Johnson to Lords of Trade, Sept. 28, 1765, *N. Y. Col. Docs.*, VII, 766. Gage to Conway, Nov. 9, 1765. Ban. Coll., Eng. & Am., 1764-1765.

[78] Gage to Conway, Sept. 23, 1765, Ban. Coll., Eng. & Am., 1764-1765. Johnson to Wallace, Sept. 18, 1765, Johnson MSS, Vol. XI, No. 56. Johnson to Lords of Trade, Sept. 28, 1765, *N. Y. Col. Docs.*, VII, 766.

[79] Gage to Conway, Sept. 23, 1765, Ban. Coll., Eng. & Am., 1764-1765.

[80] *Ibid.*

[81] Stirling to Gage, Oct. 18, 1765, Pub. Rec. Office, A. & W. Ind. Vol. 122.

[82] Sterling to Gage, Oct. 18, 1765, Pub. Rec. Office, A. & W. Ind. Vol. 122.

[83] Ibid.

[84] Ibid.

[85] Ibid. Sterling asserts that although Croghan claimed to have made a peace with all the Illinois chiefs, he is assured that not one was present at the peace conference in Ouiatanon, and that his own sudden appearance at the village was the real cause of his success. Sir William Johnson, in a letter to Croghan, Feb. 21, 1766, (Johnson MSS, Vol. XII, No. 60.) casts doubt upon the representation of Sterling. He says that it is easy to account for his motives, and that he has written Gen. Gage fully upon the subject. The letter referred to has probably been destroyed; at any rate it is not in any of the large collections.

[86] Sterling to Gage, Oct. 18, 1765, Pub. Rec. Office, A. & W. Ind., Vol. 122. Eidington to —, Oct. 17, 1765, Catham Papers, Vol. 97, Pub. Rec. Office. Gage to Johnson, Dec. 30, 1765, MS letter in Pa. Hist. Soc. Lib. Gage to Barrington, Jan. 8, 1766, Pub. Rec. Office, A. & W. Ind., Vol. 122. Gage to Conway, Jan. 16, 1766, Ibid. Johnson to Lords of Trade, Jan. 31, 1766, *N. Y. Col. Docs.*, X, 1161 ff. Capt. Sterling relates in his letter to Gage that he had considerable difficulty in persuading St. Ange to surrender his ammunition and artillery stores. The latter claimed he had positive orders to surrender only the fort and a few pieces of artillery.

As to the time of Sterling's arrival, Parkman, II, 314, says he arrived in the early part of winter, while Nicollet, in his sketch of St. Louis, states that the fort was reached in mid-summer. From the above references, there can be no doubt as to the exact date.

[87] Text of the Proclamation in *Can. Arch. Report*, 1906, pp 119-123. For discussion as to the origin of the various clauses, see Alvord, *Genesis of the Proclamation of 1763*, in *Mich. Pion. & Hist. Coll.*

[88] Egremont to Lords of Trade, July 14, 1763. *Can. Arch. Report*, 1906, p 108.

[89] Egremont to Lords of Trade, Aug. 5, 1763, C. A. Rep., 1906, pp 110-111.

[90] "We would humbly propose, that a Commission under the Great Seal, for the Government of this Country, should be given to the Commander-in-chief of Your Majesty's Troops for the time being adapted to the Protection of the Indians and the Fur Trade of Your Majesty's subjects." Ibid., p 111.

[91] They could not have been ignorant of the existence of such colonies in the ceded territory, for Sir William Johnson, who was familiar with western conditions, was in constant correspondence with the ministry, and such works as the *Histoire de Louisiana* by Du Pratz, published in 1758, were doubtless familiar to English statesmen.

[92] See post Ch. V.

[93] Dartmouth to Cramahé, *Can. Arch. Ser. Q.*, Vol. IX, p 157.

[94] See post Ch. V.

[95] It is very curious that no reference occurs in Art. XV of the Plan, which dealt with civil matters. "That for the maintaining peace and good Order in the Indian Country, and bringing Offenders in criminal Cases to due Punishment, the said Agents or Superintendents, as also the Commissaries at each Post, and in the Country belonging to each Tribe, be empowered to act as Justices of the Peace in their respective Districts and Departments, with all powers and privileges vested in such Officers in any of the Colonies; and also full power of Committing Offenders in Capital Cases, in order that such Offenders may be prosecuted for the same; And that, for deciding all civil actions, the Commissaries be empowered to try and determine in a Summary way all such Actions, as well between the Indians and Traders, as between one Trader and another, to the amount of Ten Pound Sterling, with the Liberty of Appeal to the Chief Agent or Superintendant, or his Deputy, who shall be empowered upon such appeal to give Judgement thereon; which Judgement shall be final, and process issued upon it, in like manner as on the Judgement of any Court of Common Pleas established in any of the Colonies."

[96] Brown, *Hist. of Ill.*, 212-213. See post Ch. VII.

[97] Gage to Sec. Conway, March 28, 1766. B. T. Papers, Vol. XX, Pa. Hist. Soc. Lib.

[98] Gage to Johnson, Jan. 24, 1767, Johnson MSS, XIV, No. 28.

[99] See post Ch. IV.

[100] Review of the Trade and Affairs of the Indians in the Northern District of America, *N. Y. Col. Docs.*, Vol. VII, 964.

[101] Gage to Hillsborough, Aug. 6, 1771, Pub. Rec. Office, A. & W. I., Vol. 128. Two years before he had written: "Two persons are confined in Fort Chartres for murder, and the Colonel (Wilkins) proposes to send them to Philadelphia, about fifteen hundred miles, to take their Tryall." Gage to Hillsborough, Oct. 7, 1769, Pub. Rec. Office, A. W. I., Vol. 125.

[102] Hillsborough to Gage, Dec. 9, 1769, Pub. Rec. Office, A. & W. I., Vol. 124.

[103] "The situation and particular circumstances of the Illinois (sic) Country, and the use, if that Country is maintained, if guarding the Ohio and Illinois Rivers at or near their junctions with the Mississippi has been set forth to your Lordship in my letter of the 22d of Feb. last. It is upon that plan the Regiment is posted in the Disposition in the Illinois Country." Gage to Shelburne, April 3, 1767, Pub. Rec. Office, A. & W. I., Vol. 123.

[104] Blackstone, *Commentaries*, (3d ed., Cooley) *Introduction*, sec. 4, 107.

[105] Text of the decision in *Can. Arch. Report*, 1906, pp 366-370.

[106] Other important leading cases, such as Calvin's case in 1607 and the case of *Blanchard vs Galdy* in the 18th century, involving the status of Jamaica, have the same bearing. See Sioussat, *English Statutes in Maryland*, J. H. U. Studies, XXI, 481-487.

[107] *Can. Arch. Report*, 1906, 120-121.

[108] *Franklin's Works*, (Sparks Ed.) IV, 303-323. "I conceive that to procure all the commerce it will afford and at as little expense to ourselves as we can is the only object we should have in view in the interior Country for a century to come." Gage to Hillsborough, Nov. 10, 1770, Pub. Rec. Office, A. & W. I., Vol. 126. It may be noted, however, that some members of the government had serious doubts as to this policy. Such men as Shelburne favored an early opening of the country to colonization.

[109] Alvord, *Gen. of the Proc. of 1763*, Mich. Pion. & Hist. Coll., Vol.

[110] Alvord, *Gen. of Proc. of 1763*, Mich. Pion. & Hist. Coll.

[111] *Can. Arch. Report*, 1906, p 122.

[112] See supra ch. III.

[113] *Can. Arch. Report*, 1904, pp 242-246. The plan is here presented in full.

[114] *Franklin's Works*, V, 38. Coffin, *Quebec Act and the American Revolution*, p 415, quoting from Knox, *Justice and Policy of the Quebec Act*, London, 1774.

[115] The failure to successfully carry out this plan would of course leave the country a dead weight on the empire.

[116] Johnson MSS, Vol. X, No. 190.

[117] Morgan notes something more than mere mention, since he plays an important role in the affairs of the Illinois country from 1765-1771. He was born in Philadelphia in 1741 and was educated at Princeton college. Through the influence of his father-in-law, James Baynton, he was admitted to the firm of Baynton and Wharton and in 1765 became the western representative of the firm. After his experiences in Illinois, Morgan served the Revolutionary cause in the capacity of Indian agent. He died in 1810. See *Biography of Col. George Morgan*, by Julia Morgan Harding, in the *Washington (Pa.) Observer*, May 21, 1904.

[118] This company had traded extensively among the Indians on the Penn. border prior to 1765. During the Indian wars the firm lost heavily and it was in an attempt to retrieve its fortune that a branch house was established in the Illinois Country.

[119] Morgan's MS Letter Book.

[120] Morgan's MS Letter Book.

[121] Five batteaus loaded with goods under the command of John Jennings, sailed from Fort Pitt, March 9, 1765. Joseph Dobson to Baynton, Wharton, and Morgan, March 9, 1765, MS letter, Pa. Hist. Soc. Lib.

[122] Morgan's MS Letter Book.

[123] Ibid.

[124] Ibid.

[125] Ibid.

[126] Gage wrote in 1770 that the "Company from Philadelphia (Baynton, Wharton, and Morgan) failed in the Illinois trade." Gage to Hillsborough, Dec. 7, 1770, Pub. Rec. Office, A. & W. I., Vol. 128.

[127] See Ch. II for references.

[128] Johnson to Hillsborough, Aug. 14, 1770, *N. Y. Col. Docs.*, VIII, 224. See extract from "Ponteach or the Savages of North America: A Tragedy," in Parkman, *Conspiracy of Pontiac*, II, 344 ff.

[129] Johnson to Hillsborough, Aug. 14, 1770, *N. Y. Col. Docs.*, VIII, 224.

[130] Johnson to Hillsborough, Aug. 14, 1770, *N. Y. Col. Docs.*, VIII, 292.

[131] Johnson to Lords of Trade, Sept. 1767, *N. Y. Col. Docs.*, VII, 964-965.

[132] Ibid.

[133] Ibid.

[134] Ibid.

[135] The British were not so well situated to command the trade as the French had been. The Illinois post had always been the center for the trade of the Missouri river region, but after the cession of Illinois to England and the Foundation of St. Louis by La Clede in 1764, the latter place became the centre for the trade of that region.

[136] Information of the State of Commerce given by Capt. Forbes, 1768, Pub. Rec. Office, A. & W. I., Vol. 125.

[137] Gordon's Journal down the Ohio, 1766, MS in Pa. Hist. Soc. Lib. Phym to Johnson, April 15, 1768, Johnson MSS, Vol. 25, No. 109.

[138] Gage to Hillsborough, April 24, 1768, Pub. Rec. Office, A. & W. I., Vol. 124 Gage to Shelburne, April 24, 1768, Pub. Rec. Office, A. & W. I., Vol. 124.

[139] Gage to Hillsborough, Nov. 10, 1770, Pub. Rec. Office, A. & W. I., Vol. 126 Huchin's Remarks upon the Illinois country, 1771, MS in Pa. Hist. Soc. Lib. It may be noted also that during the French regime the French-Canadians traded extensively in this region. See Gage's Report on the State of the Government of Montreal.

[140] Wilkins to Barrington, Dec. 5, 1769, Pub. Rec. Office, A. & W. I., Vol. 124.

[141] Johnson to Carleton, Jan. 27, 1767, C.A., Ser. Q, Vol. IV, p 115.

[142] Johnson to Hillsborough, Feb. 18, 1771, *N. Y. Col. Docs.*, VIII, 263.

[143] Gage to Hillsborough, Apr. 24, 1768, Pub. Rec. Office, A. & W. I., Vol. 124.

[144] Order for O'Reilly, Jan. 27, 1770, Pub. Rec. Office, A. & W. I., Vol. 126.

[145] Information of the State of Commerce, in the Illinois Country, given by Captain Forbes, 1768, Pub. Rec. Office, Vol. 125. Morgan's MS Letter Book.

[146] Gage to Hillsborough, Nov. 10, 1770, Pub. Rec. Office, A. & W. I., Vol. 126.

[147] Gage to Shelburne, Jan. 17, 1767, B. T. Papers, Vol. 27, Pa. Hist. Soc. Lib.

[148] Gage to Shelburne, Dec. 23, 1766, B. T. Papers, Vol. 27, Pa. Hist. Soc. Lib. Johnson to Gage, Jan. 29, 1767, Johnson MSS, Vol. XIV, No. 35. Gage to Shelburne, Feb. 22, 1767, B. T. Papers, Vol. XXII, Pa. Hist. Soc. Lib. Gage to Johnson, Jan. 25, 1767, Johnson MSS, Vol. XIV, No. 28. George Phym to Johnson, Apr. 15, 1768, Johnson MSS, Vol. XXV, No. 109. Gage to Dartmouth, May 5, 1773, Pub. Rec. Office, A. & W. I., Vol. 128. Gage wrote in 1766 that skins and furs bore a price of ten pence per pound higher at New Orleans than at any British market. Gage to Conway, July 15, 1766, Pub. Rec. Office, A. & W. I., Vol. 122.

[149] Gage to Conway, July 15, 1766, Pub. Rec. Office, A. & W. I., Vol. 122.

[150] Gage to Shelburne, Dec. 23, 1766, B. T. Papers, Vol. XXVII, Pa. Hist. Lib.

[151] Ibid., Feb. 22, 1767, B. T. Papers, Vol. XXII, Pa. Hist. Soc. Lib.

[152] Gage to Shelburne, Feb. 22, 1767, B. T. Papers, Vol. XXII, Pa. Hist. Soc. Lib.

[153] Ibid., "As long as Skinns and Furrs bear a high price at New Orleans they will never be brought to a British Market. The Indian Trade in general from the observations I have made, will always go with the stream, and the whole will either go down the St. Lawrence or Mississippi Rivers." Gage to Johnson, Jan. 25, 1767, Johnson MSS, XIV, No. 28. "I am entirely of your opinion concerning the Trade, &c. by way of the Mississippi whilst the Traders find better markets at New Orleans." Johnson to Gage, Jan. 29, 1767, Johnson MSS, Vol. XIV, No. 35. Also Johnson to Gage, Feb. 24, 1767, Johnson MSS, XIV, No. 67. "So long as New Orleans is in the hands of another power, the whole produce of the western country must center there. For our merchants will always dispose of their peltry or whatever the country produces, at New Orleans where they get as good a price as if they were to ship them off." Phym to Johnson, Mobile, April 15, 1768, Johnson MSS, Vol. XXV, No. 109. "The Traders from these Colonies say it will answer to carry Goods down the Ohio, but that it will not answer to return with their Peltry by the same route, as they can get to Sea at so much less expense, & greater expedition by means of Rapidity of the Mississippi, and pretend that they have Ships at New Orleans to transport their Peltry to England." Gage to Shelburne, Jan. 17, 1767, B. T. Papers, Vol. XXVII, Pa. Hist. Soc. Lib. "The Peltry gained by the Traders from Canada, whether on the Mississippi or on the Ouabache we may be satisfied generally goes down the St. Lawrence River to Quebec: it has been the usual track of those Traders from the beginning, & there is no reason to suspect the contrary now. But the British Traders at the Illinois who carry their Goods above three hundred miles by land before they have the convenience of Water or Carriage cannot afford to return the same way, with the produce of their Trade." Gage to Hillsborough, Nov. 10, 1770, Pub. Rec. Office, A. & W. I., Vol. 126. That this state of affairs continued through most of the period is evident from the following: "The Trade of the Mississippi, except that of the upper parts from whence a portion may go to Quebec, goes down that River; and has, as well as everything we have done on the Mississippi, as far as I have been able to discover tended more to the Benefit of New Orleans than of ourselves. And I conceive it must be the case, as

long as the Commodities of the Mississippi bear a better price at New Orleans than at a British Market." Gage to Dartmouth, May, 5, 1773, Pub. Rec. Office, A. & W. I., Vol. 128.

[154] It is necessary to ascertain the cost of maintaining the military establishments and the Indian department in the West, and the amount of peltries imported into England. I already have some figures on this but not enough upon which to base any statement.

[155] Beer, *British Colonial Policy*, 222.

[156] Hutchins, Remarks on the Country of the Illinois, MS in Pa. Hist. Soc. Lib. Hutchins gives an account of the exports from Illinois from Sept. 1769 to Sept. 1770. In that year 550 packs of peltries were sent from Illinois, while from the Spanish side 835 packs were exported. Wilkins, the commandant at Fort Chartres at this time, makes a somewhat higher estimate, but the two agree in essentials.

[157] Gage estimated it at 80,000 pounds sterling. Gage to Shelburne, Jan. 17, 1767. B. T. Papers, Vol. XXVII. Pa. Hist. Soc. Lib. "New Orleans remits one hundred thousand pounds Sterling worth of Peltry annually for France." Baynton, Wharton, and Morgan to McLeane, Oct. 9, 1767, B. T. Papers, Vol. XXVI, Pa. Hist. Soc. Lib.

[158] Gage to Johnson, Jan. 19, 1767, Johnson MSS, Vol. XIV, No. 23, Captain Forbes, commandant at Fort Chartres during part of 1768, wrote to Gage: "As I am very sensible of the immense expence this Country is to the Crown & the little advantage the Public has hitherto reaped by the trade with the savages, & the reason is that the inhabitants have continued to send their Peltry to New Orleans which is shipped from thence to Old France & all the money that is laid out for the Troops and Savages is immediately sent to New Orleans, for which our Subjects get French Manufactures. I hope, Sir, you will excuse me when I observe to Your Excellency, that the Crown of Great Britain is at all the expence & that France reaps the advantages." Forbes to Gage, April 15, 1768, Pub. Rec. Office, A. & W. I., Vol. 124. Commandant Wilkins wrote the same year, "the French of New Orleans are the sole gainers in this Trade and the public suffer greatly thereby." Wilkins to Gage, Sept. 13, 1768, Pub. Rec. Office.

[159] Hillsborough to Gage, July 31, 1770, Pub. Rec. Office, A. & W. I., Vol. 126.

[160] Gage to Shelburne, April 3, 1767, Pub. Rec. Office, A. & W. I., Vol. 123.

[161] Gage to Johnson, Feb, 8, 1767, Johnson MSS, Vol. XIV, No. 44.

[162] "It has not the least command of the River, owing to an Island which lies exactly opposite to it, & the Channel is entirely on the other side for a great part of the year. This is impassable from a sand bar which runs across even for small boats, & the French & their contraband goods, forcing an illicit Trade, to our great disadvantage & a certain and very considerable loss to his Majesty's Revenue." Wilkins to Barrington, Dec. 5, 1767, Pub. Rec. Office, A. & W. I., Vol. 123.

[163] Gordon's Journal, 1766, MS in Pa. Hist. Soc. Lib. Gage to Johnson, Feb. 8, 1767, Johnson MSS, XIV, No. 44. Hillsborough to Gage, July 31, 1770, Pub. Rec. Office, A. & W. I., Vol. 126.

- [164] Gage to Hillsborough, Jan. 16, 1768, Pub. Rec. Office, A. & W. I., Vol 124.
- [165] Gage to Shelburne, April 3, 1767, Pub. Rec. Office, A. & W. I., Vol. 123. Johnson to Lords of Trade, Sept. 1767, N. Y. Col. Docs. Vol. VII, 974.
- [166] Gage to Conway, July 15, 1766, Pub. Rec. Office, A. & W. I. Vol. 122. Gordon's Journal down the Ohio, 1766, MS in Pa. Hist. Soc. Lib. Gage to Johnson, Jan. 25, 1767, Johnson MSS, XIV, No. 28. Ibid., Feb. 8, 1767, Johnson MSS, XIV, No. 44. Gage to Shelburne, Jan. 17, 1767, B. T. Papers, Vol. XXVII, Pa. Hist. Soc. Lib. Gage to Shelburne, April 3, 1767, Pub. Rec. Office, A. & W. I., Vol. 123. Johnson to Lords of Trade, Sept. 1767, N. Y. Col. Docs., VII, 974. Phym to Johnson, April 15, 1768, Johnson MSS, XXV, No. 109. Wilkins to Gage, Sept. 13, 1768, Pub. Rec. Office, A. & W. I., Vol. 125. Wilkins to Harrington, Dec. 5, 1769, Pub. Rec. Office, A. & W. I., Vol. 123. Gage to Hillsborough, Nov. 10, 1772, Pub. Rec. Office, A. & W. I., Vol. 126.
- [167] Gordon's Journal down the Ohio, 1766, MS in Pa. Hist. Soc. Lib.
- [168] Gage to Hillsborough, June 16, 1768, Pub. Rec. Office, A. & W. I., Vol. 124.
- [169] Hillsborough to Gage, July 31, 1770, Pub. Rec. Office, A. & W. I., Vol. 126.
- [170] Alden, *Governments West of the Alleghanies before 1789*, pp No attempt is made in my study to add any new contribution to the period preceding 1763.
- [171] Ibid., 7-11.
- [172] Original Articles of Agreement of the Mississippi Co. Chatham Papers, Vol. 97, Pub. Rec. Office. Another copy, in the handwriting of Washington, is in the Lib. of Congress. No mention is made in the original articles relative to the exact location of the proposed colony. Most of the information concerning the project comes from a collection of papers relating to the company, in the handwriting of William Lee, which I found in a miscellaneous collection of the Earl of Chatham's papers, in the Pub. Rec. Office.
- [173] Some of the original members of the company were George, Samuel and John Washington, and several of the Lees and Fitzhughs. There were 38 charter members, but provision was made for 50.
- [174] Articles of Agreement, Chatham Papers, Vol. 97. Each member was to have fifty thousand acres. Ibid.
- [175] Memorial to the crown, prepared at a meeting of the company at Belleview, Va., Sept. 9, 1763.
- [176] Ibid. Articles of Agreement.
- [177] Tennessee River.
- [178] Memorial to the crown, Sept. 9, 1763. Four years later this suggestion was withdrawn at the suggestion of their London agent, Thomas Cumming. Letter to Cumming, March 1, 1767. Catham Papers, Vol. 97. Some of the members declared their determination to become early settlers in the new colony. Memorial to the

crown, Sept. 9, 1763. Petition to the crown, Dec. 16th, 1768, Butler, *Hist. of Ky.*, 381-383.

[179] Memorial to the crown, Sept. 9th, 1763, Chatham Papers, Vol. 97.

[180] Ibid.

[181] Letter of the company to Thomas Cumming, Sept. 26th, 1763.

[182] Can. Arch., *Report for 1906*, p 122. See ch. III.

[183] Ibid.

[184] "I can never look upon that proclamation in any other light (but this I say between ourselves), than as a temporary expedient to quiet the minde of the Indians, and must fall, of course, in a few years, especially when those Indians are consenting to our occupying the lands." Washington to Crawford, Sept. 21, 1767. Writings of Washington, II, 220-221. (Ford ed.)

[185] Letter of William Lee, London, May 30, 1769, Chatham Papers, Vol. 97.

[186] I have found no account of any further activity on the part of the company. In 1774 a copy of the correspondence was sent to the Earl of Chatham, which may have been done in the hope that his interest might be aroused in the undertaking. The bundle of papers contains the following indorsement: "Mississippi Cos. papers, sent to the Right Honble William Earl of Chatham, on Saturday the 20th of April 1774. Charles Lee, in speaking of this undertaking, said: "Another society solicited for lands on the lower part of the Illinois, Ohio or on the Mississippi: this was likewise rejected; but from what motives it is impossible to define, unless they suppose that soldiers invested with a little landed property, would not be so readily induced to act as the instruments of the oppression of their fellow subjects, as those whose views are solely turned, if not reduced, to farther promotion; and if reduced, to full pay." The Lee Papers, N. Y. Hist. Soc. Colls., VII, 98.

[187] The Charles Lee of Revolutionary fame.

[188] Lee Papers, *N. Y. Hist. Soc. Coll.*, VII, 214. Sparks, Life of Lee, Sparks Bio. Ser., IV, 19.

[189] Lee Papers, VII, 214.

[190] Ibid.

[191] Ibid.

[192] Ibid.

[193] Croghan to Johnson, Mar. 30, 1766, Johnson MSS, XII, No. 127

[194] Alden, *New Government West of the Alleghanies before 1780*, p 12. Mr. Alden notes a pamphlet published in London entitled "Advantages of a Settlement upon the Ohio in North America," and another pamphlet issued at Edinburgh in 1763 entitled "Expediency of Securing our American Colonies." In the same connection the following is of interest: "As the happy possession of the Illinois Country is the Subject of much conversation, both in England & America, we beg leave to inclose,—a small pamphlet, wrote lately on a very interesting point—

towit, The Establishment of a Civil Government there: The Author, has borrowed some of his Sentiments from Monsr. De Prats." Baynton, Wharton, & Morgan to Johnson, Mar. 30, 1766, Johnson MSS, Vol. XII, No. 128.

[195] George Croghan who was in London in 1764 wrote: There is a talk of settleing a Colony from the mouth of the Ohio to the Illinois, which I am tould Lord Halifax will Desier my opinion of in a few Days. Mr. pownal tould me yesterday that I would be soon sent for attend the board of Trade. what Meshures they will Take Lord knows but nothing is talkt of but Oconomy," Croghan to Johnson. Mar. 10, 1764, Johnson MSS, VIII.

[196] N.Y. Col. Docs., VII, 605. As appears from the above note Croghan was to have been summoned before the Board of Trade to answer questions relative to a new colony. Whether he was finally called upon for his testimony is not known.

[197] Later, however, he adopted this idea. Croghan to Johnson, March 30, 1766, Vol. XII, No. 127.

[198] Johnson to Lords of Trade, Jan. 31, 1766, N.Y. Col. Docs., VII, 809. When Croghan was preparing to go to the Illinois in 1766 in order to pacify the Indians, Johnson wrote him as follows: "As soon as I hear farther from the General I shall write you and send the Instructions in which I shall insert an Article directing you to enquire into the French bounds & Property at the Illinois. I have no objection to what you propose on that subject there, and as the French are now said to be retiring fast, you will have the better opportunity of making a good Choice on which the value will chiefly depend." Johnson to Croghan, Mar. 28, 1786, Johnson MSS, XII, 126.

[199] Gage to Conway, Mar. 28, 1766, B. T. Papers, Vol. XX. Pa. His. Soc. Lib. He explained further "that Lands should be granted without delay, by any Person authorized properly to do it; but no Fees are to be taken by the Person who grants, or by Secretarys, Clerks, Surveyors, or other Persons whatever; that no large tracts should be given, but the Lands granted in Farms, consisting of an Hundred & Fifty or Two Hundred Acres of good Land, unless to Half Pay Officers, who might have Four or Five Hundred Acres. People may be tempted on these Advantages to transport themselves with a Year's Provisions, Seed, Corn and Tools for Husbandry, down the Ohio. The Lands shall be held of the King on condition of Military Service, & such other obligations as shall be convenient." To anticipate somewhat, the details thus outlined by Gage are in striking contrast to those proposed by the active promoters of the colony.

[200] Croghan to Johnson, Mar. 30, 1766. Johnson MSS, XII, No. 127.

[201] Articles of Agreement, MS copy in Pa. His. Soc. Lib. The signers of the original draught were: William Franklin, Sir William Johnson per George Croghan, George Croghan, John Baynton, Samuel Wharton, George Morgan, Joseph Wharton, Sr., Joseph Wharton, Joseph Hughes and Joseph Galloway. Gage declined being concerned in the project, although his attitude doubtless contributed something towards it. Johnson to Gov. Franklin, June 20, 1766, MS letter in AM. Antiq. Soc. Lib.

[202] William Franklin to B. Franklin, Apr. 30, 1766, Printed in Bigelow's Life of Franklin, 538, "Inclosed is the proposals Drawn up by governor franklin for yr

honours perusal and such Amendments or Alterations as you may judge necessary," Croghan to Johnson, March 30, 1766, Johnson MSS, XII, No. 127.

[203] Articles of Agreement, Penn. Hist. Soc. Lib. This was a new contribution to the original plans of Croghan, Johnson, and Gage. It was probably Franklin's own suggestion, as we have seen that he himself drew up the sketch.

[204] Articles of Agreement. Croghan writing to Johnson said: "itt is likewise preposed to aply for a Grant of 1200,000 Acres to the crown in that Country and to take into this Grant two or three Gentlemen of fortune and Influence in England and Governor franklin and those other Gentlemen desire to know whome your honour would chouse to be concerned, & that you wold write to them if you should nott name ye whole you wold chouse they Designe to Save y. Nomination of such as you dont to Dr. franklin who they prepose to send the proposals to he is much attended to by ye Ministry and certainly can be of Service in this affair." March 30, 1766, Johnson MSS, XII, No. 127.

[205] Croghan to Johnson, March 30, 1766, Johnson MSS, XII, No. 127. Baynton, Wharton, and Morgan to Johnson, June 6, 1766, Johnson MSS, Vol. XII, 197.

[206] Croghan to Johnson, Mar. 30, 1766. Johnson to Baynton, Wharton, and Morgan, June 20, 1766, Johnson MSS, XII, No. 214. Johnson to William Franklin, July 8, 1766, Johnson Papers, Am. Antiq. Soc. Lib.

[207] Croghan to Johnson, Mar. 30, 1766. Johnson to William Franklin, June 20, 1766, Johnson Papers, Am. Antiq. Soc. Lib. Johnson to B. W. & M. June 20, 1766, Johnson MSS, XII, No. 204.

[208] Johnson to Conway, July 10, 1766, B. T. Papers, Pa. Hist. Soc. Lib.

[209] See letters of Franklin to his son, in Franklin's Works, IV, 136-145.

[210] Brown, *Hist. of Ill.*, 212-213.

[211] Can. Arch., *Report*, 1907, p 75.

[212] Brown, *Hist. of Ill.*, 213.

[213] Can. Arch., *Report for 1907*, p 75.

[214] Brown, *Hist. of Ill.*, 213.

[215] Ibid.

[216] Sterling to Gage, Oct. 18th, 1765, Pub. Rec. Office, A. & W. I. 122.

[217] Ibid.

[218] Can. Arch., *Report for 1907*, p 86.

[219] Butler, *Treaty Making Power*, I.

[220] Sterling to Gage, Oct. 18, 1765, Pub. Rec. Office, A. & W. I., Vol. 122.

[221] Ibid. Farmer to Gage, Dec. 19, 1765, B. T. Papers, Vol. 20, Penn. Hist. Soc. Lib.

[222] Petition of inhabitants to Gage, Pub. Rec. Office, A. & W. I., Vol. 122. The petition is signed by such prominent men as La Grange, who acted for a time as civil judge under the British; Rocheblane, who became the last British commandant in Illinois; Blouin, a wealthy merchant and later a prominent advocate of a civil government, J. B. Beanvais, Charleville and others. Gage granted their request without waiting for an answer from London, thus indorsing the action of his subordinate. Gage to Conway, Jan. 16, 1766, Pub. Rec. Office, A. & W. I., Vol. 122.

[223] Sterling to Gage, Oct. 18, 1765, Pub. Rec. Office, A. & W. I., Vol. 122.

[224] Sterling to Gage, Dec. 15, 1765, Pub. Rec. Office, A. & W. I., Vol. 122.

[225] Ibid.

[226] Ibid.

[227] Ibid. Cahokia Records, British Period.

[228] Sterling to Gage, Oct. 18, 1765, Pub. Rec. Office, A. & W. I., Vol. 122, N. Y. Col. Docs. X, 1161.

[229] Monette, in Hist. of the Valley of the Mississippi, I, 411, says that "Capt. Stirling died in December, St. Ange returned to Fort Chartres, and not long afterward Major Frazer, from Fort Pitt arrived as commandant." Billou, in Annals of St. Louis, I, p 26, makes the same assertion. The statement is an error, since Sterling served in the Revolutionary war, and lived until 1808. Frazer never commanded at Fort Chartres. See Winsor, Narr. & Crit. Hist. VI, 706. For a sketch of Sterling's career see N. Y. Col. Docs., VII, 706, and Dic. of Nat. Biog. Vol.

[230] For sketch of Farmer's life see N. Y. Col. Docs., VII, 786.

[231] Farmer to Gage, Dec. 15 & 19, 1765, B. T. Papers, Vol. 20, Pa. Hist. Soc. Lib. Johnson to Lords of Trade, Mar. 22, 1766, N. Y. Col. Docs. VII, 816. Gage to Conway, Mar. 28, 1766, B. T. Papers, Vol. 20, Pa. Hist. Soc. Lib. Campbell to Johnson, Mar. 29, 1766, Park. Coll., Pontiac, Miscell. 1765-1778. Farmer to Gage, Mar. 11, 1766, Home Office Papers, Vol. 20, No. 41, Pub. Rec. Office. In the letter just cited Farmer blames Gov. Johnstone of West Florida for his long delay in starting for the Illinois and for the scant supply of provisions he carried. It appears that Farmer had planned to start early in the spring of 1765, but he alleges that Johnstone questioned his right to take provisions from the store, and in many other ways delayed his departure for several weeks.

[232] Sterling to Gage, Oct. 18, 1765, P.R. Office, A. & W. I., Vol. 122.

[233] Letter of Eidington, Oct. 12, 1765, Catham Papers, Pub. Rec. Office.

[234] Ibid.

[235] Ibid.

[236] Ibid., Stirling to Gage, Oct. 18, 1765, Pub. Rec. Office, A. & W. I., Vol. 122.

[237] Sterling to Gage, Oct. 18, 1765, Pub. Rec. Office, A. & W. I., 122.

[238] Letter of Eidington, Oct. 12, 1765, Catham Papers, Pub. Rec. Office, Vol. 122.

[239] Sterling to Gage, Dec. 15, 1765, Chatham Papers, Pub. Rec. Office, Am. & W. I., Vol. 122.

[240] Fraser to Gage, Dec. 16, 1765, B. T. Papers, Vol. 20, Pa. Hist. Soc. Lib. Farmer alleged that St. Ange, who acted as commandant at St. Louis after his retirement from Fort Chartres, instigated many of the French to cross over, and that other residents of the Spanish side endeavoured to frighten the inhabitants of Illinois by representing Major Farmer as a rascal who would deprive them of their former privileges.

[241] Memorial of the inhabitants to Gage, Oct. 1765, Pub. Rec. Office, Am. & W. I., Vol. 122. Fraser to Gage, Dec. 16, 1765, B. T. Papers, Vol. XX, Pa. Hist. Soc. Lib. The movement of the inhabitants across the river was considerable during the early years of the occupation. In the summer of 1765, there were approximately 2000 whites on the English side. Fraser to Gage, May 15, 1765, Pub. Rec. Office, A. & W. I., Vol. 122. Three years later, in 1768, the approximate number was 1000. See for this, State of the Settlements in the Illinois Country, Pub. Rec. Office, A. & W. I., Vol. 125.

[242] Farmer to Gage, Dec. 16, 1765, B. T. Papers, Vol. 20, Pa. Hist. Soc. Lib. Ibid., March 19, 1766, Pub. Rec. Office, A. & W. I., Vol. 122.

[243] Ibid., Dec. 16 & 19, B. T. Papers, Vol. 20. Farmer had just received word that Col. Reid was on his way to the Illinois from Mobile, with about fifty men and just enough provisions for the journey, he was depending upon receiving further supplies at Fort Chartres. Ibid.

[244] Farmer to Gage, Dec. 16 & 19, 1765, B. T. Papers Vol. XX, Pa. Hist. Soc. Lib.

[245] Gage to Conway, June 24, 1766, Pub. Rec. Office, A. & W. I., Vol. 122.

[246] Ibid., July 15, 1766. Baynton, Wharton, & Morgan to Gage, Aug. 10, 1766, Johnson MSS, Vol. XIII, No.30.

[247] See supra ch. IV.

[248] George Morgan's Letter Book. MS copy.

[249] The exact date of the change is not known. The first document that appears with Reid's signature as commandant is dated Sept. 8th. Johnson MSS, Vol. XIII, No. 104. Major Farmer was expecting his successor's arrival some time in July or August. Farmer to Gage, Mar. 9th, 1766, Pub. Rec. Office, Am. & W. I., Vol. 122.

Transcriber's Note:

- The original spelling, hyphenation, and punctuation have been retained, with the exception of apparent typographical errors which have been corrected.
- Ambiguous hyphens at the ends of lines were retained.
- Punctuation and spelling were made consistent when a predominant form was found in this text; otherwise they were not changed.
- Footnotes were moved to the end of the text and numbered in one continuous sequence.
- Other notes and corrections:
 - p. 3: sparceness changed to sparseness. (The sparseness of its population.)
 - p. 10: Boquet changed to Bouquet. (Previous to Bouquet's second campaign.)
 - p. 19: Missing footnote 56 tag added by the transcriber.
 - p. 20: Sinnot and Sinnot: Variants unchanged.
 - p. 21: sefuse changed to refuse. (St. Ange continued to refuse.)
 - p. 33: delinquenents unchanged. (A determination to delinquenents to punishment.)
 - p. 42: Missing footnote 118 tag added by the transcriber.
 - p. 44: effect changed to affect. (Not only did it affect English traders.)

- p. 46: Missing footnote 133 tag added by the transcriber.
- p. 55: Missing footnote 164 tag added by the transcriber.
- p. 77: The wealth of colony changed to The wealth of the colony.
- Variants unchanged: Ilinois and Illinois.
- p. 38, footnote 109, page 58, footnote 170, and p. 76, footnote 229: Incomplete references, page numbers missing.

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